

AMENDMENTS TO LB150

Introduced by Judiciary.

1 1. Strike the original sections and insert the following new
2 sections:

3 **Section 1.** Sections 1 to 5 of this act shall be known and may be
4 cited as the Regional Mental Health Expansion Pilot Program Act.

5 **Sec. 2.** The Legislature finds and declares that:

6 (1) The State of Nebraska is facing serious issues in its current
7 mental health system, including a shortage of mental health care
8 professionals and long travel distances to receive care. These issues
9 have had a negative impact on those suffering from mental health issues
10 and their communities, particularly in rural parts of the state;

11 (2) As a consequence, when an individual experiences a mental health
12 crisis in public, law enforcement officers are frequently required to
13 respond and take the individual into emergency protective custody until
14 the individual can be transported to an available mental health treatment
15 facility. This places a significant burden on law enforcement agencies,
16 particularly in rural parts of the state, which is compounded by the
17 shortage of mental health bed space and long travel distances to
18 facilities;

19 (3) Addressing these issues is vitally important to the state, and
20 the state would benefit from innovative solutions aimed at reducing the
21 negative impact of mental health issues on individuals and law
22 enforcement agencies;

23 (4) There is a history of cooperation between rural agencies and
24 communities that have successfully worked together to meet regional needs
25 efficiently and cost-effectively; and

26 (5) There is an opportunity to adapt the existing method of
27 cooperation and apply it in a way that helps reduce the impact on those

1 suffering from mental health issues and the law enforcement agencies that
2 interact with them.

3 **Sec. 3.** (1) The Nebraska Commission on Law Enforcement and Criminal
4 Justice shall create a regional mental health expansion pilot program to
5 provide funding to a county law enforcement agency to expand mental
6 health beds and encourage cooperation between law enforcement agencies to
7 service the region.

8 (2) The Legislature intends that the pilot program will demonstrate
9 a method of regional cooperation among law enforcement agencies to
10 address the impact of shortages and the long travel distances on those
11 suffering from mental health issues and law enforcement agencies and that
12 can be replicated statewide.

13 (3) The commission shall select one county law enforcement agency
14 for the pilot program. The selected agency shall:

15 (a) Have the capacity to add mental health beds, either at an
16 existing jail facility or elsewhere;

17 (b) Have a history of cooperation with other law enforcement
18 agencies;

19 (c) Provide an assessment of the anticipated regional impact of the
20 additional mental health beds on individuals with mental health issues
21 and law enforcement agencies; and

22 (d) Cooperate with other counties or law enforcement agencies
23 through a memorandum of understanding to ensure the mental health beds
24 provide a regional benefit.

25 (4) The Legislature does not intend the Regional Mental Health
26 Expansion Pilot Program Act to criminalize mental health issues or result
27 in the incarceration of individuals for mental health issues, and nothing
28 in the act should be so construed. The purpose of this pilot program is
29 to expand mental health services provided by law enforcement agencies to
30 individuals temporarily in custody for mental health issues.

31 **Sec. 4.** (1) The Nebraska Commission on Law Enforcement and Criminal

1 Justice shall administer the pilot program and, in addition to the
2 requirements set out in section 3 of this act, develop grant eligibility,
3 application, and audit requirements.

4 (2) The commission may adopt and promulgate rules and regulations to
5 carry out the Regional Mental Health Expansion Pilot Program Act.

6 (3) The commission shall identify grant funding to carry out the
7 Regional Mental Health Expansion Pilot Program Act.

8 **Sec. 5.** The Nebraska Commission on Law Enforcement and Criminal
9 Justice shall coordinate with the Attorney General to carry out the
10 Regional Mental Health Expansion Pilot Program Act.

11 **Sec. 6.** The Nebraska Commission on Law Enforcement and Criminal
12 Justice shall create a pilot program to seek federal funding for
13 collaborative efforts in emergency response by law enforcement agencies
14 and mental health professionals.

15 **Sec. 7.** Section 27-413, Revised Statutes Cumulative Supplement,
16 2024, is amended to read:

17 27-413 For purposes of sections 27-414 and 27-415, offense of sexual
18 assault means sexual assault under section 28-319 or 28-320, sexual abuse
19 by a school worker employee under section 28-316.01, sexual assault of a
20 child under section 28-319.01 or 28-320.01, sexual assault by use of an
21 electronic communication device under section 28-320.02, sexual abuse of
22 an inmate or parolee under sections 28-322.01 to 28-322.03, sexual abuse
23 of a protected individual under section 28-322.04, sexual abuse of a
24 detainee under section 28-322.05, an attempt or conspiracy to commit any
25 of the crimes listed in this section, or the commission of or conviction
26 for a crime in another jurisdiction that is substantially similar to any
27 crime listed in this section.

28 **Sec. 8.** Section 28-105, Revised Statutes Cumulative Supplement,
29 2024, is amended to read:

30 28-105 (1) For purposes of the Nebraska Criminal Code and any
31 statute passed by the Legislature after the date of passage of the code,

1 felonies are divided into ten classes which are distinguished from one
2 another by the following penalties which are authorized upon conviction:

3 Class I felony Death

4 Class IA felony Life imprisonment

5 Class IB felony Maximum-life imprisonment

6 Minimum-twenty years imprisonment

7 Class IC felony Maximum-fifty years imprisonment

8 Mandatory minimum-five years imprisonment

9 Class ID felony Maximum-fifty years imprisonment

10 Mandatory minimum-three years imprisonment

11 Class II felony Maximum-fifty years imprisonment

12 Minimum-one year imprisonment

13 Class IIA felony Maximum-twenty years imprisonment

14 Minimum-none

15 Class III felony Maximum-four years imprisonment and two years

16 post-release supervision or

17 twenty-five thousand dollars fine, or both

18 ~~Minimum-none for imprisonment and none for~~

19 ~~post-release supervision~~

20 ~~Minimum none for imprisonment and nine months~~

21 ~~post-release supervision if imprisonment is imposed~~

22 Class IIIA felony Maximum-three years imprisonment

23 and eighteen months post-release supervision or

24 ten thousand dollars fine, or both

25 ~~Minimum-none for imprisonment and none for~~

26 ~~post-release supervision~~

27 ~~Minimum none for imprisonment and nine months~~

28 ~~post-release supervision if imprisonment is imposed~~

29 Class IV felony Maximum-two years imprisonment and twelve

1 months post-release supervision or
2 ten thousand dollars fine, or both
3 Minimum—none for imprisonment and none for
4 post-release supervision

5 (2) All sentences for maximum terms of imprisonment for one year or
6 more for felonies shall be served in institutions under the jurisdiction
7 of the Department of Correctional Services. All sentences for maximum
8 terms of imprisonment of less than one year shall be served in the county
9 jail.

10 (3) Nothing in this section shall limit the authority granted in
11 sections 29-2221 and 29-2222 to increase sentences for habitual
12 criminals.

13 (4) A person convicted of a felony for which a mandatory minimum
14 sentence is prescribed shall not be eligible for probation.

15 (5) All sentences of post-release supervision shall be served under
16 the jurisdiction of the Office of Probation Administration and shall be
17 subject to conditions imposed pursuant to section 29-2262 and subject to
18 sanctions authorized pursuant to section 29-2266.02.

19 (6) Any person who is sentenced to imprisonment for a Class I, IA,
20 IB, IC, ID, II, or IIA felony and sentenced concurrently or consecutively
21 to imprisonment for a Class III, IIIA, or IV felony shall not be subject
22 to post-release supervision pursuant to subsection (1) of this section.

23 (7) Any person who is sentenced to imprisonment for a Class III,
24 IIIA, or IV felony committed prior to August 30, 2015, and sentenced
25 concurrently or consecutively to imprisonment for a Class III, IIIA, or
26 IV felony committed on or after August 30, 2015, shall not be subject to
27 post-release supervision pursuant to subsection (1) of this section.

28 (8) The changes made to the penalties for Class III, IIIA, and IV
29 felonies by Laws 2015, LB605, do not apply to any offense committed prior
30 to August 30, 2015, as provided in section 28-116.

1 **Sec. 9.** Section 28-311.11, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 28-311.11 (1) Any victim of a sexual assault offense may file a
4 petition and affidavit for a sexual assault protection order as provided
5 in subsection (3) of this section. Upon the filing of such a petition and
6 affidavit in support thereof, the court may issue a sexual assault
7 protection order without bond enjoining the respondent from (a) imposing
8 any restraint upon the person or liberty of the petitioner, (b)
9 harassing, threatening, assaulting, molesting, attacking, or otherwise
10 disturbing the peace of the petitioner, or (c) telephoning, contacting,
11 or otherwise communicating with the petitioner. The sexual assault
12 protection order shall specify to whom relief under this section was
13 granted.

14 (2) The petition for a sexual assault protection order shall state
15 the events and dates or approximate dates of acts constituting the sexual
16 assault offense, including the most recent and most severe incident or
17 incidents.

18 (3) A petition for a sexual assault protection order shall be filed
19 with the clerk of the district court and the proceeding may be heard by
20 the county court or the district court as provided in section 25-2740.

21 (4) A petition for a sexual assault protection order may not be
22 withdrawn except upon order of the court. A sexual assault protection
23 order shall specify that it is effective for a period of one year unless
24 renewed pursuant to subsection (12) of this section or otherwise
25 dismissed or modified by the court. Any person, except the petitioner,
26 who knowingly violates a sexual assault protection order after service or
27 notice as described in subdivision (9)(b) of this section shall be guilty
28 of a Class I misdemeanor, except that any person convicted of violating
29 such order who has a prior conviction for violating a sexual assault
30 protection order shall be guilty of a Class IV felony.

31 (5)(a) Fees to cover costs associated with the filing of a petition

1 for issuance or renewal of a sexual assault protection order or the
2 issuance or service of a sexual assault protection order seeking only the
3 relief provided by this section shall not be charged, except that a court
4 may assess such fees and costs if the court finds, by clear and
5 convincing evidence, that the statements contained in the petition were
6 false and that the sexual assault protection order was sought in bad
7 faith.

8 (b) A court may also assess costs associated with the filing of a
9 petition for issuance or renewal of a sexual assault protection order or
10 the issuance or service of a sexual assault protection order seeking only
11 the relief provided by this section against the respondent.

12 (6) The clerk of the district court shall make available standard
13 application and affidavit forms for issuance and renewal of a sexual
14 assault protection order with instructions for completion to be used by a
15 petitioner. Affidavit forms shall request all relevant information,
16 including, but not limited to: A description of the most recent incident
17 that was the basis for the application for a sexual assault protection
18 order and the date or approximate date of the incident and, if there was
19 more than one incident, the most severe incident and the date or
20 approximate date of such incident. The clerk and his or her employees
21 shall not provide assistance in completing the forms. The State Court
22 Administrator shall adopt and promulgate the standard application and
23 affidavit forms provided for in this section as well as the standard
24 temporary ex parte and final sexual assault protection order forms and
25 provide a copy of such forms to all clerks of the district courts in this
26 state. Such standard temporary ex parte and final sexual assault
27 protection order forms shall be the only forms used in this state.

28 (7) A sexual assault protection order may be issued or renewed ex
29 parte without notice to the respondent if it reasonably appears from the
30 specific facts shown by affidavit of the petitioner that irreparable
31 harm, loss, or damage will result before the matter can be heard on

1 notice. If a sexual assault protection order is not issued ex parte, the
2 court shall immediately schedule an evidentiary hearing to be held within
3 fourteen days after the filing of the petition, and the court shall cause
4 notice of the application to be given to the respondent stating that he
5 or she may show cause why such order should not be entered. Any notice
6 provided to the respondent shall include notification that a court may
7 treat a petition for a sexual assault protection order as a petition for
8 a harassment protection order or a domestic abuse protection order if it
9 appears from the facts that such other protection order is more
10 appropriate and that the respondent shall have an opportunity to show
11 cause as to why such protection order should not be entered. If such ex
12 parte order is issued or renewed without notice to the respondent, the
13 court shall forthwith cause notice of the petition and order and a form
14 with which to request a show-cause hearing to be given the respondent
15 stating that, upon service on the respondent, the order shall remain in
16 effect for a period of one year unless the respondent shows cause why the
17 order should not remain in effect for a period of one year. If the
18 respondent wishes to appear and show cause why the order should not
19 remain in effect for a period of one year, he or she shall affix his or
20 her current address, telephone number, and signature to the form and
21 return it to the clerk of the district court within ten business days
22 after service upon him or her. Upon receipt of a timely request for a
23 show-cause hearing, the court shall immediately schedule a show-cause
24 hearing to be held within thirty days after the receipt of the request
25 for a show-cause hearing and shall notify the petitioner and respondent
26 of the hearing date. The petition and affidavit shall be deemed to have
27 been offered into evidence at any show-cause hearing. The petition and
28 affidavit shall be admitted into evidence unless specifically excluded by
29 the court.

30 (8) A court may treat a petition for a sexual assault protection
31 order as a petition for a harassment protection order or a domestic abuse

1 protection order if it appears from the facts in the petition, affidavit,
2 and evidence presented at a show-cause hearing that such other protection
3 order is more appropriate and if:

4 (a) The court makes specific findings that such other order is more
5 appropriate; or

6 (b) The petitioner has requested the court to so treat the petition.

7 (9)(a) Upon the issuance or renewal of any temporary ex parte or
8 final sexual assault protection order, the clerk of the court shall
9 forthwith provide the petitioner, without charge, with two certified
10 copies of such order. The clerk of the court shall also forthwith provide
11 the local police department or local law enforcement agency and the local
12 sheriff's office, without charge, with one copy each of such order and
13 one copy each of the sheriff's return thereon. The clerk of the court
14 shall also forthwith provide a copy of the sexual assault protection
15 order to the sheriff's office in the county where the respondent may be
16 personally served together with instructions for service. Upon receipt of
17 the order and instructions for service, such sheriff's office shall
18 forthwith serve the sexual assault protection order upon the respondent
19 and file its return thereon with the clerk of the court which issued the
20 sexual assault protection order within fourteen days of the issuance of
21 the initial or renewed sexual assault protection order. If any sexual
22 assault protection order is dismissed or modified by the court, the clerk
23 of the court shall forthwith provide the local police department or local
24 law enforcement agency and the local sheriff's office, without charge,
25 with one copy each of the order of dismissal or modification.

26 (b) If the respondent is present at a hearing convened pursuant to
27 this section and the sexual assault protection order is not dismissed,
28 such respondent shall be deemed to have notice by the court at such
29 hearing that the protection order will be granted and remain in effect
30 and further service of such notice described in this subsection shall not
31 be required for purposes of prosecution under this section.

1 (c) A temporary ex parte sexual assault protection order shall be
2 affirmed and deemed the final protection order and service of the
3 temporary ex parte order shall be notice of the final protection order if
4 the respondent has been properly served with the ex parte order and:

5 (i) The respondent fails to request a show-cause hearing within ten
6 business days after service upon him or her and no hearing was requested
7 by the petitioner or upon the court's own motion;

8 (ii) The respondent has been properly served with notice of any
9 hearing requested by the respondent or petitioner or upon the court's own
10 motion and the respondent fails to appear at such hearing; or

11 (iii) The respondent has been properly served with notice of any
12 hearing requested by the respondent, the petitioner, or upon the court's
13 own motion and the protection order was not dismissed at the hearing.

14 (10) A peace officer shall, with or without a warrant, arrest a
15 person if (a) the officer has probable cause to believe that the person
16 has committed a violation of a sexual assault protection order issued
17 pursuant to this section or a violation of a valid foreign sexual assault
18 protection order recognized pursuant to section 28-311.12 and (b) a
19 petitioner under this section provides the peace officer with a copy of
20 such order or the peace officer determines that such an order exists
21 after communicating with the local law enforcement agency.

22 (11) A peace officer making an arrest pursuant to subsection (10) of
23 this section shall take such person into custody and take such person
24 before the county court or the court which issued the sexual assault
25 protection order within a reasonable time. At such time the court shall
26 establish the conditions of such person's release from custody, including
27 the determination of bond or recognizance, as the case may be. The court
28 shall issue an order directing that such person shall have no contact
29 with the alleged victim of the sexual assault offense.

30 (12)(a) An order issued under subsection (1) of this section may be
31 renewed annually. To request renewal of the order, the petitioner shall

1 file a petition for renewal and affidavit in support thereof at any time
2 within forty-five days prior to the date the order is set to expire,
3 including the date the order expires.

4 (b) A sexual assault protection order may be renewed on the basis of
5 the petitioner's affidavit stating that there has been no material change
6 in relevant circumstances since entry of the order and stating the reason
7 for the requested renewal if:

8 (i) The petitioner seeks no modification of the order; and

9 (ii)(A) The respondent has been properly served with notice of the
10 petition for renewal and notice of hearing and fails to appear at the
11 hearing; or

12 (B) The respondent indicates that he or she does not contest the
13 renewal.

14 (c) The petition for renewal shall state the reasons a renewal is
15 sought and shall be filed with the clerk of the district court, and the
16 proceeding thereon may be heard by the county court or the district court
17 as provided in section 25-2740. A petition for renewal will otherwise be
18 governed in accordance with the procedures set forth in subsections (4)
19 through (11) of this section. The renewed order shall specify that it is
20 effective for one year commencing on the first calendar day after
21 expiration of the previous order or on the calendar day the court grants
22 the renewal if such day is subsequent to the first calendar day after
23 expiration of the previous order.

24 (13) When provided by the petitioner, the court shall make
25 confidential numeric victim identification information, including social
26 security numbers and dates of birth, available to appropriate criminal
27 justice agencies engaged in protection order enforcement efforts. Such
28 agencies shall maintain the confidentiality of this information, except
29 for entry into state and federal databases for protection order
30 enforcement.

31 (14) For purposes of this section, sexual assault offense means:

1 (a) Conduct amounting to sexual assault under section 28-319 or
2 28-320, sexual abuse by a school worker ~~employee~~ under section 28-316.01,
3 sexual assault of a child under section 28-319.01 or 28-320.01, or an
4 attempt to commit any of such offenses; or

5 (b) Subjecting or attempting to subject another person to sexual
6 contact or sexual penetration without his or her consent, as such terms
7 are defined in section 28-318.

8 **Sec. 10.** Section 28-316.01, Revised Statutes Cumulative Supplement,
9 2024, is amended to read:

10 28-316.01 (1) For purposes of this section:

11 (a) Sexual contact has the same meaning as in section 28-318;

12 (b) Sexual penetration has the same meaning as in section 28-318;

13 (c) School means a public, private, denominational, or parochial
14 school approved or accredited by the State Department of Education;

15 (d) School contract worker means a person nineteen years of age or
16 older who, as part of such person's employment, is assigned to work at a
17 school and works in proximity to students of such school, but who is not
18 employed by such school;

19 (e) {c} School employee means a person nineteen years of age or
20 older who is employed by a public, private, denominational, or parochial
21 school approved or accredited by the State Department of Education; and

22 (f) School worker means a school contract worker or a school
23 employee; and

24 (g) {d} Student means a person at least sixteen but not more than
25 nineteen years of age enrolled in or attending a public, private,
26 denominational, or parochial school approved or accredited by the State
27 Department of Education, or who was such a person enrolled in or who
28 attended such a school within ninety days of any violation of this
29 section.

30 (2) A person commits the offense of sexual abuse by a school worker
31 employee if a school worker ~~employee~~ subjects a student in the school to

1 which such worker ~~employee~~ is assigned for work to sexual penetration or
2 sexual contact, or engages in a pattern or scheme of conduct to subject a
3 student in the school to which such worker ~~employee~~ is assigned for work
4 to sexual penetration or sexual contact. It is not a defense to a charge
5 under this section that the student consented to such sexual penetration
6 or sexual contact.

7 (3) Any school worker ~~employee~~ who engages in sexual penetration
8 with a student is guilty of sexual abuse by a school worker ~~employee~~ in
9 the first degree. Sexual abuse by a school worker ~~employee~~ in the first
10 degree is a Class IIA felony.

11 (4) Any school worker ~~employee~~ who engages in sexual contact with a
12 student is guilty of sexual abuse by a school worker ~~employee~~ in the
13 second degree. Sexual abuse by a school worker ~~employee~~ in the second
14 degree is a Class IIIA felony.

15 (5) Any school worker ~~employee~~ who engages in a pattern or scheme of
16 conduct with the intent to subject a student to sexual penetration or
17 sexual contact is guilty of sexual abuse by a school worker ~~employee~~ in
18 the third degree. Sexual abuse by a school worker ~~employee~~ in the third
19 degree is a Class IV felony.

20 **Sec. 11.** Section 28-318, Revised Statutes Cumulative Supplement,
21 2024, is amended to read:

22 28-318 As used in sections 28-317 to 28-322.05, unless the context
23 otherwise requires:

24 (1) Actor means a person accused of sexual assault;

25 (2) Intimate parts means the genital area, groin, inner thighs,
26 buttocks, or breasts;

27 (3) Past sexual behavior means sexual behavior other than the sexual
28 behavior upon which the sexual assault is alleged;

29 (4) Serious personal injury means great bodily injury or
30 disfigurement, extreme mental anguish or mental trauma, pregnancy,
31 disease, or loss or impairment of a sexual or reproductive organ;

1 (5) Sexual contact means the intentional touching of the victim's
2 sexual or intimate parts or the intentional touching of the victim's
3 clothing covering the immediate area of the victim's sexual or intimate
4 parts. Sexual contact also means the touching by the victim of the
5 actor's sexual or intimate parts or the clothing covering the immediate
6 area of the actor's sexual or intimate parts when such touching is
7 intentionally caused by the actor. Sexual contact includes only such
8 conduct which can be reasonably construed as being for the purpose of
9 sexual arousal or gratification of either party. Sexual contact also
10 includes the touching of a child with the actor's sexual or intimate
11 parts on any part of the child's body for purposes of sexual abuse by a
12 school worker ~~employee~~ under section 28-316.01 or sexual assault of a
13 child under sections 28-319.01 and 28-320.01;

14 (6) Sexual penetration means sexual intercourse in its ordinary
15 meaning, cunnilingus, fellatio, anal intercourse, or any intrusion,
16 however slight, of any part of the actor's or victim's body or any object
17 manipulated by the actor into the genital or anal openings of the
18 victim's body which can be reasonably construed as being for nonmedical,
19 nonhealth, or nonlaw enforcement purposes. Sexual penetration shall not
20 require emission of semen;

21 (7) Victim means the person alleging to have been sexually
22 assaulted;

23 (8) Without consent means:

24 (a)(i) The victim was compelled to submit due to the use of force or
25 threat of force or coercion, or (ii) the victim expressed a lack of
26 consent through words, or (iii) the victim expressed a lack of consent
27 through conduct, or (iv) the consent, if any was actually given, was the
28 result of the actor's deception as to the identity of the actor or the
29 nature or purpose of the act on the part of the actor;

30 (b) The victim need only resist, either verbally or physically, so
31 as to make the victim's refusal to consent genuine and real and so as to

1 reasonably make known to the actor the victim's refusal to consent; and

2 (c) A victim need not resist verbally or physically where it would
3 be useless or futile to do so; and

4 (9) Force or threat of force means (a) the use of physical force
5 which overcomes the victim's resistance or (b) the threat of physical
6 force, express or implied, against the victim or a third person that
7 places the victim in fear of death or in fear of serious personal injury
8 to the victim or a third person where the victim reasonably believes that
9 the actor has the present or future ability to execute the threat.

10 **Sec. 12.** Section 28-322, Revised Statutes Cumulative Supplement,
11 2024, is amended to read:

12 28-322 For purposes of sections 28-322 to 28-322.03:

13 (1) Inmate or parolee means any individual confined in a facility
14 operated by the Department of Correctional Services or a city or county
15 correctional or jail facility or under parole supervision; and

16 (2) Person means (a) an individual employed by the Department of
17 Correctional Services ~~or by the Division of Parole Supervision~~, including
18 any individual working in central administration of the department, any
19 individual working under contract with the department, and any
20 individual, other than an inmate's spouse, to whom the department has
21 authorized or delegated control over an inmate or an inmate's activities,
22 (b) an individual employed by a city or county correctional or jail
23 facility, including any individual working in central administration of
24 the city or county correctional or jail facility, any individual working
25 under contract with the city or county correctional or jail facility, and
26 any individual, other than an inmate's spouse, to whom the city or county
27 correctional or jail facility has authorized or delegated control over an
28 inmate or an inmate's activities, and (c) an individual employed by the
29 Office of Probation Administration who performs official duties within
30 any facility operated by the Department of Correctional Services or a
31 city or county correctional or jail facility.

1 **Sec. 13.** Section 28-519, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 28-519 (1) For purposes of this section:

4 (a) Tamper means to interfere with, displace, remove, damage,
5 disable, destroy, set fire to, impair, or otherwise interfere with
6 something without lawful authority or express permission; and

7 (b) Rail infrastructure means any of the following that are located
8 on railroad property or that are owned, leased, possessed, operated, or
9 otherwise used for or in connection with railroad operations: A train,
10 locomotive, freight or passenger car, or any other on-track vehicle or
11 equipment; any railroad track or structure; any signaling or
12 communication system or component; or any station, terminal, depot, or
13 other facility.

14 (2) {1} A person commits criminal mischief if he or she:

15 (a) Damages property of another intentionally or recklessly; ~~or~~

16 (b) Intentionally tampers with property of another so as to endanger
17 person or property; or

18 (c) Intentionally or maliciously causes another to suffer pecuniary
19 loss by deception or threat.

20 (3) Criminal mischief is a Class III felony if the actor acts
21 intentionally or maliciously with the intent to cause a substantial
22 interruption or impairment of:

23 (a) Any rail infrastructure;

24 (b) Any telecommunication or broadband communication service; or

25 (c) The supply of water, gas, or power.

26 (4) {2} Criminal mischief is a Class IV felony if the actor
27 intentionally or maliciously causes pecuniary loss of five thousand
28 dollars or more, ~~or a substantial interruption or impairment of public~~
29 ~~communication, transportation, supply of water, gas, or power, or other~~
30 ~~public service.~~

31 (5) {3} Criminal mischief is a Class I misdemeanor if the actor

1 intentionally or maliciously causes pecuniary loss of one thousand five
2 hundred dollars or more but less than five thousand dollars.

3 (6) ~~(4)~~ Criminal mischief is a Class II misdemeanor if the actor
4 intentionally or maliciously causes pecuniary loss of five hundred
5 dollars or more but less than one thousand five hundred dollars.

6 (7) ~~(5)~~ Criminal mischief is a Class III misdemeanor if the actor
7 intentionally, maliciously, or recklessly causes pecuniary loss in an
8 amount of less than five hundred dollars, or if his or her action results
9 in no pecuniary loss.

10 **Sec. 14.** Section 29-2221, Revised Statutes Cumulative Supplement,
11 2024, is amended to read:

12 29-2221 (1) Whoever has been twice convicted of a crime, sentenced,
13 and committed to prison, in this or any other state or by the United
14 States or once in this state and once at least in any other state or by
15 the United States, for terms of not less than one year each shall, upon
16 conviction of a felony committed in this state, be deemed to be a
17 habitual criminal and shall be punished by imprisonment in a Department
18 of Correctional Services adult correctional facility for a mandatory
19 minimum term of ten years and a maximum term of not more than sixty
20 years, except that:

21 (a) If the felony committed is in violation of section 28-303,
22 28-304, 28-308, 28-313, 28-319, 28-319.01, 28-502, 28-929, or 28-1222,
23 and at least one of the habitual criminal's prior felony convictions was
24 for a violation of one of the sections listed in this subdivision or of a
25 similar statute in another state or of the United States, the mandatory
26 minimum term shall be twenty-five years and the maximum term not more
27 than sixty years;

28 (b) If the felony committed is in violation of subsection (3) of
29 section 28-306 and at least one of the prior convictions is in violation
30 of subsection (3) of section 28-306 and the other is in violation of one
31 of the sections set forth in subdivision (a) of this subsection or if the

1 felony committed is in violation of one of the sections set forth in
2 subdivision (a) of this subsection and both of the prior convictions are
3 in violation of subsection (3) of section 28-306, the mandatory minimum
4 term shall be twenty-five years and the maximum term not more than sixty
5 years;

6 (c) If the felony committed is in violation of subsection (3) of
7 section 28-416 or in violation of sections 28-509 to 28-518 and all of
8 the habitual criminal's prior felony convictions are also violations of
9 such subsection or sections or of a similar statute in another state or
10 of the United States and at least one of the prior felony convictions do
11 not involve sexual contact, sexual penetration, the threat to inflict
12 serious bodily injury or death on another person, the infliction of
13 serious bodily injury on another person, a deadly or dangerous weapon, or
14 a firearm, the mandatory minimum term shall be three years and the
15 maximum term not more than ~~the maximum term for the felony committed or~~
16 ~~twenty years , whichever is greater. For this subdivision (1)(c) to~~
17 ~~apply, no prior felony conviction may be a violation described in~~
18 ~~subdivision (1)(a) of this section;~~ and

19 (d) If a greater punishment is otherwise provided by statute, the
20 law creating the greater punishment shall govern.

21 (2) When punishment of an accused as a habitual criminal is sought,
22 the facts with reference thereto shall be charged in the indictment or
23 information which contains the charge of the felony upon which the
24 accused is prosecuted, but the fact that the accused is charged with
25 being a habitual criminal shall not be an issue upon the trial of the
26 felony charge and shall not in any manner be disclosed to the jury. If
27 the accused is convicted of a felony, before sentence is imposed a
28 hearing shall be had before the court alone as to whether such person has
29 been previously convicted of prior felonies. The court shall fix a time
30 for the hearing and notice thereof shall be given to the accused at least
31 three days prior thereto. At the hearing, if the court finds from the

1 evidence submitted that the accused has been convicted two or more times
2 of felonies and sentences imposed therefor by the courts of this or any
3 other state or by the United States, the court shall sentence such person
4 so convicted as a habitual criminal.

5 (3) If the person so convicted shows to the satisfaction of the
6 court before which the conviction was had that he or she was released
7 from imprisonment upon either of such sentences upon a pardon granted for
8 the reason that he or she was innocent, such conviction and sentence
9 shall not be considered as such under this section and section 29-2222.

10 **Sec. 15.** Section 29-2246, Revised Statutes Cumulative Supplement,
11 2024, is amended to read:

12 29-2246 For purposes of the Nebraska Probation Administration Act
13 ~~and sections 43-2,123.01 and 83-1,102 to 83-1,104~~, unless the context
14 otherwise requires:

15 (1) Association means the Nebraska District Court Judges
16 Association;

17 (2) Court means a district court, county court, or juvenile court as
18 defined in section 43-245;

19 (3) Office means the Office of Probation Administration;

20 (4) Probation means a sentence under which a person found guilty of
21 a crime upon verdict or plea or adjudicated delinquent or in need of
22 special supervision is released by a court subject to conditions imposed
23 by the court and subject to supervision. Probation includes post-release
24 supervision and supervision ordered by a court pursuant to a deferred
25 judgment under section 29-2292 or 29-4803;

26 (5) Probationer means a person sentenced to probation or post-
27 release supervision;

28 (6) Probation officer means an employee of the system who supervises
29 probationers and conducts presentence, predisposition, or other
30 investigations as may be required by law or directed by a court in which
31 he or she is serving or performs such other duties as authorized pursuant

1 to section 29-2258, except unpaid volunteers from the community;

2 (7) Juvenile probation officer means any probation officer who
3 supervises probationers of a separate juvenile court;

4 (8) Juvenile intake probation officer means an employee of the
5 system who is called upon by a law enforcement officer in accordance with
6 section 43-250 to make a decision regarding the furtherance of a
7 juvenile's detention;

8 (9) Chief probation officer means the probation officer in charge of
9 a probation district;

10 (10) System means the Nebraska Probation System;

11 (11) Administrator means the probation administrator;

12 (12) Non-probation-based program or service means a program or
13 service established within the district, county, or juvenile courts and
14 provided to individuals not sentenced to probation who have been charged
15 with or convicted of a crime for the purpose of diverting the individual
16 from incarceration or to provide treatment for issues related to the
17 individual's criminogenic needs. Non-probation-based programs or services
18 include, but are not limited to, problem solving courts established
19 pursuant to section 24-1302 and the treatment of problems relating to
20 substance abuse, mental health, sex offenses, or domestic violence;

21 (13) Post-release supervision means the portion of a split sentence
22 following a period of incarceration under which a person found guilty of
23 a crime upon verdict or plea is released by a court subject to conditions
24 imposed by the court and subject to supervision by the office; and

25 (14) Rules and regulations means policies and procedures written by
26 the office and approved by the Supreme Court.

27 **Sec. 16.** Section 29-2252, Revised Statutes Cumulative Supplement,
28 2024, is amended to read:

29 29-2252 The administrator shall:

30 (1) Supervise and administer the office;

31 (2) Establish and maintain policies, standards, and procedures for

1 the system, with the concurrence of the Supreme Court;

2 (3) Prescribe and furnish such forms for records and reports for the
3 system as shall be deemed necessary for uniformity, efficiency, and
4 statistical accuracy;

5 (4) Establish minimum qualifications for employment as a probation
6 officer in this state and establish and maintain such additional
7 qualifications as he or she deems appropriate for appointment to the
8 system. Qualifications for probation officers shall be established in
9 accordance with subsection (4) of section 29-2253. An ex-offender
10 released from a penal complex or a county jail may be appointed to a
11 position of deputy probation or parole officer. Such ex-offender shall
12 maintain a record free of arrests, except for minor traffic violations,
13 for one year immediately preceding his or her appointment;

14 (5) Establish and maintain advanced periodic inservice training
15 requirements for the system;

16 (6) Cooperate with all agencies, public or private, which are
17 concerned with treatment or welfare of persons on probation. All
18 information provided to the Nebraska Commission on Law Enforcement and
19 Criminal Justice for the purpose of providing access to such information
20 to law enforcement agencies through the state's criminal justice
21 information system shall be provided in a manner that allows such
22 information to be readily accessible through the main interface of the
23 system;

24 (7) Organize and conduct training programs for probation officers.
25 Training shall include the proper use of a risk and needs assessment,
26 risk-based supervision strategies, relationship skills, cognitive
27 behavioral interventions, community-based resources, criminal risk
28 factors, and targeting criminal risk factors to reduce recidivism and the
29 proper use of a matrix of administrative sanctions, custodial sanctions,
30 and rewards developed pursuant to subdivision (18) of this section. All
31 probation officers employed on or after August 30, 2015, shall complete

1 the training requirements set forth in this subdivision;

2 (8) Collect, develop, and maintain statistical information
3 concerning probationers, probation practices, and the operation of the
4 system and provide the Community Corrections Division of the Nebraska
5 Commission on Law Enforcement and Criminal Justice with the information
6 needed to compile the report required in section 47-624;

7 (9) Interpret the probation program to the public with a view toward
8 developing a broad base of public support;

9 (10) Conduct research for the purpose of evaluating and improving
10 the effectiveness of the system. Subject to the availability of funding,
11 the administrator shall contract with an independent contractor or
12 academic institution for evaluation of existing community corrections
13 facilities and programs operated by the office;

14 (11) Adopt and promulgate such rules and regulations as may be
15 necessary or proper for the operation of the office or system. The
16 administrator shall adopt and promulgate rules and regulations for
17 transitioning individuals on probation across levels of supervision and
18 discharging them from supervision consistent with evidence-based
19 practices. The rules and regulations shall ensure supervision resources
20 are prioritized for individuals who are high risk to reoffend, require
21 transitioning individuals down levels of supervision intensity based on
22 assessed risk and months of supervision without a reported major
23 violation, and establish incentives for earning discharge from
24 supervision based on compliance;

25 (12) Transmit a report during each even-numbered year to the Supreme
26 Court on the operation of the office for the preceding two calendar years
27 which shall include a historical analysis of probation officer workload,
28 including participation in non-probation-based programs and services. The
29 report shall be transmitted by the Supreme Court to the Governor and the
30 Clerk of the Legislature. The report submitted to the Clerk of the
31 Legislature shall be submitted electronically;

1 (13) Administer the payment by the state of all salaries, travel,
2 and expenses authorized under section 29-2259 incident to the conduct and
3 maintenance of the office;

4 (14) Use the funds provided under section 29-2262.07 to augment
5 operational or personnel costs associated with the development,
6 implementation, and evaluation of enhanced probation-based programs and
7 non-probation-based programs and services in which probation personnel or
8 probation resources are utilized pursuant to an interlocal agreement
9 authorized by subdivision (16) of this section and to purchase services
10 to provide such programs aimed at enhancing adult probationer or non-
11 probation-based program participant supervision in the community and
12 treatment needs of probationers and non-probation-based program
13 participants. Enhanced probation-based programs include, but are not
14 limited to, specialized units of supervision, related equipment purchases
15 and training, and programs that address a probationer's vocational,
16 educational, mental health, behavioral, or substance abuse treatment
17 needs;

18 (15) Ensure that any risk or needs assessment instrument utilized by
19 the system be periodically validated;

20 (16) Have the authority to enter into interlocal agreements in which
21 probation resources or probation personnel may be utilized in conjunction
22 with or as part of non-probation-based programs and services. Any such
23 interlocal agreement shall comply with section 29-2255;

24 (17) Collaborate with the Community Corrections Division of the
25 Nebraska Commission on Law Enforcement and Criminal Justice and the
26 Department of Correctional Services ~~Division of Parole Supervision~~ to
27 develop rules governing the participation of parolees in community
28 corrections programs operated by the Office of Probation Administration;

29 (18) Develop a matrix of rewards for compliance and positive
30 behaviors and graduated administrative sanctions and custodial sanctions
31 for use in responding to and deterring substance abuse violations and

1 technical violations. As applicable under sections 29-2266.02 and
2 29-2266.03, custodial sanctions of up to thirty days in jail shall be
3 designated as the most severe response to a violation in lieu of
4 revocation and custodial sanctions of up to three days in jail shall be
5 designated as the second most severe response;

6 (19) Adopt and promulgate rules and regulations for the creation of
7 individualized post-release supervision plans, collaboratively with the
8 Department of Correctional Services and county jails, for probationers
9 sentenced to post-release supervision; and

10 (20) Exercise all powers and perform all duties necessary and proper
11 to carry out his or her responsibilities.

12 Each member of the Legislature shall receive an electronic copy of
13 the report required by subdivision (12) of this section by making a
14 request for it to the administrator.

15 **Sec. 17.** Section 29-2261, Revised Statutes Cumulative Supplement,
16 2024, is amended to read:

17 29-2261 (1) Unless it is impractical to do so, when an offender has
18 been convicted of a felony other than murder in the first degree, the
19 court shall not impose sentence without first ordering a presentence
20 investigation of the offender and according due consideration to a
21 written report of such investigation. When an offender has been convicted
22 of murder in the first degree and (a) a jury renders a verdict finding
23 the existence of one or more aggravating circumstances as provided in
24 section 29-2520 or (b)(i) the information contains a notice of
25 aggravation as provided in section 29-1603 and (ii) the offender waives
26 his or her right to a jury determination of the alleged aggravating
27 circumstances, the court shall not commence the sentencing determination
28 proceeding as provided in section 29-2521 without first ordering a
29 presentence investigation of the offender and according due consideration
30 to a written report of such investigation.

31 (2) A court may order a presentence investigation in any case,

1 except in cases in which an offender has been convicted of a Class IIIA
2 misdemeanor, a Class IV misdemeanor, a Class V misdemeanor, a traffic
3 infraction, or any corresponding city or village ordinance.

4 (3) The presentence investigation and report shall include, when
5 available, an analysis of the circumstances attending the commission of
6 the crime, the offender's history of delinquency or criminality, physical
7 and mental condition, family situation and background, economic status,
8 education, occupation, and personal habits, and any other matters that
9 the probation officer deems relevant or the court directs to be included.
10 All local and state police agencies and Department of Correctional
11 Services adult correctional facilities shall furnish to the probation
12 officer copies of such criminal records, in any such case referred to the
13 probation officer by the court of proper jurisdiction, as the probation
14 officer shall require without cost to the court or the probation officer.

15 Such investigation shall also include:

16 (a) Any written statements submitted to the county attorney by a
17 victim; and

18 (b) Any written statements submitted to the probation officer by a
19 victim.

20 (4) If there are no written statements submitted to the probation
21 officer, he or she shall certify to the court that:

22 (a) He or she has attempted to contact the victim; and

23 (b) If he or she has contacted the victim, such officer offered to
24 accept the written statements of the victim or to reduce such victim's
25 oral statements to writing.

26 For purposes of subsections (3) and (4) of this section, the term
27 victim shall be as defined in section 29-119.

28 (5) Before imposing sentence, the court may order the offender to
29 submit to psychiatric observation and examination for a period of not
30 exceeding sixty days or such longer period as the court determines to be
31 necessary for that purpose. The offender may be remanded for this purpose

1 to any available clinic or mental hospital, or the court may appoint a
2 qualified psychiatrist to make the examination. The report of the
3 examination shall be submitted to the court.

4 (6)(a) Any presentence report, substance abuse evaluation, or
5 psychiatric examination shall be privileged and shall not be disclosed
6 directly or indirectly to anyone other than a judge; probation officers
7 to whom an offender's file is duly transferred; the probation
8 administrator or his or her designee; alcohol and drug counselors, mental
9 health practitioners, psychiatrists, and psychologists licensed or
10 certified under the Uniform Credentialing Act to conduct substance abuse
11 evaluations and treatment; or others entitled by law to receive such
12 information, including personnel and mental health professionals for the
13 Nebraska State Patrol specifically assigned to sex offender registration
14 and community notification for the sole purpose of using such report,
15 evaluation, or examination for assessing risk and for community
16 notification of registered sex offenders.

17 (b) For purposes of this subsection, mental health professional
18 means (i) a practicing physician licensed to practice medicine in this
19 state under the Medicine and Surgery Practice Act, (ii) a practicing
20 psychologist licensed to engage in the practice of psychology in this
21 state as provided in section 38-3111 or as provided under similar
22 provisions of the Psychology Interjurisdictional Compact, (iii) a
23 practicing mental health professional licensed or certified in this state
24 as provided in the Mental Health Practice Act, or (iv) a practicing
25 professional counselor holding a privilege to practice in Nebraska under
26 the Licensed Professional Counselors Interstate Compact.

27 (7) The court shall permit inspection of the presentence report,
28 substance abuse evaluation, or psychiatric examination or parts of the
29 report, evaluation, or examination, as determined by the court, by the
30 prosecuting attorney and defense counsel. Such inspection shall be by
31 electronic access only unless the court determines such access is not

1 available to the prosecuting attorney or defense counsel. The State Court
2 Administrator shall determine and develop the means of electronic access
3 to such presentence reports, evaluations, and examinations. Upon
4 application by the prosecuting attorney or defense counsel, the court may
5 order that addresses, telephone numbers, and other contact information
6 for victims or witnesses named in the report, evaluation, or examination
7 be redacted upon a showing by a preponderance of the evidence that such
8 redaction is warranted in the interests of public safety. The court may
9 permit inspection of the presentence report, substance abuse evaluation,
10 or psychiatric examination or examination of parts of the report,
11 evaluation, or examination by any other person having a proper interest
12 therein whenever the court finds it is in the best interest of a
13 particular offender. The court may allow fair opportunity for an offender
14 to provide additional information for the court's consideration.

15 (8) If an offender is sentenced to imprisonment, a copy of the
16 report of any presentence investigation, substance abuse evaluation, or
17 psychiatric examination shall be transmitted immediately to the
18 Department of Correctional Services. Upon request, the department shall
19 provide a copy of the report to the Board of Parole ~~, the Division of~~
20 ~~Parole Supervision,~~ and the Board of Pardons.

21 (9) Notwithstanding subsections (6) and (7) of this section, the
22 Supreme Court or an agent of the Supreme Court acting under the direction
23 and supervision of the Chief Justice shall have access to psychiatric
24 examinations, substance abuse evaluations, and presentence investigations
25 and reports for research purposes. The Supreme Court and its agent shall
26 treat such information as confidential, and nothing identifying any
27 individual shall be released.

28 **Sec. 18.** Section 29-2935, Revised Statutes Cumulative Supplement,
29 2024, is amended to read:

30 29-2935 For purposes of evaluating the treatment process, ~~the~~
31 ~~Division of Parole Supervision,~~ the Department of Correctional Services,

1 the Board of Parole, and the designated aftercare treatment programs
2 shall allow appropriate access to data and information as requested by
3 the Department of Health and Human Services.

4 **Sec. 19.** Section 29-4003, Revised Statutes Cumulative Supplement,
5 2024, is amended to read:

6 29-4003 (1)(a) The Sex Offender Registration Act applies to any
7 person who on or after January 1, 1997:

8 (i) Has ever pled guilty to, pled nolo contendere to, or been found
9 guilty of any of the following:

10 (A) Kidnapping of a minor pursuant to section 28-313, except when
11 the person is the parent of the minor and was not convicted of any other
12 offense in this section;

13 (B) False imprisonment of a minor pursuant to section 28-314 or
14 28-315;

15 (C) Sexual assault pursuant to section 28-319 or 28-320;

16 (D) Sexual abuse by a school worker ~~employee~~ pursuant to section
17 28-316.01;

18 (E) Sexual assault of a child in the second or third degree pursuant
19 to section 28-320.01;

20 (F) Sexual assault of a child in the first degree pursuant to
21 section 28-319.01;

22 (G) Sexual abuse of a vulnerable adult or senior adult pursuant to
23 subdivision (1)(c) of section 28-386;

24 (H) Incest of a minor pursuant to section 28-703;

25 (I) Pandering of a minor pursuant to section 28-802;

26 (J) Visual depiction of sexually explicit conduct of a child
27 pursuant to section 28-1463.03 or subdivision (2)(b) or (c) of section
28 28-1463.05;

29 (K) Knowingly possessing any visual depiction of sexually explicit
30 conduct which has a child as one of its participants or portrayed
31 observers pursuant to subsection (1) or (4) of section 28-813.01;

1 (L) Criminal child enticement pursuant to section 28-311;

2 (M) Child enticement by means of an electronic communication device
3 pursuant to section 28-320.02;

4 (N) Debauching a minor pursuant to section 28-805; or

5 (O) Attempt, solicitation, aiding or abetting, being an accessory,
6 or conspiracy to commit an offense listed in subdivisions (1)(a)(i)(A)
7 through (1)(a)(i)(N) of this section;

8 (ii) Has ever pled guilty to, pled nolo contendere to, or been found
9 guilty of any offense that is substantially equivalent to a registrable
10 offense under subdivision (1)(a)(i) of this section by any village, town,
11 city, state, territory, commonwealth, or other jurisdiction of the United
12 States, by the United States Government, by court-martial or other
13 military tribunal, or by a foreign jurisdiction, notwithstanding a
14 procedure comparable in effect to that described under section 29-2264 or
15 any other procedure to nullify a conviction other than by pardon;

16 (iii) Is incarcerated in a jail, a penal or correctional facility,
17 or any other public or private institution or is under probation or
18 parole as a result of pleading guilty to or being found guilty of a
19 registrable offense under subdivision (1)(a)(i) or (ii) of this section
20 prior to January 1, 1997; or

21 (iv) Enters the state and is required to register as a sex offender
22 under the laws of another village, town, city, state, territory,
23 commonwealth, or other jurisdiction of the United States.

24 (b) In addition to the registrable offenses under subdivision (1)(a)
25 of this section, the Sex Offender Registration Act applies to any person
26 who on or after January 1, 2010:

27 (i)(A) Except as provided in subdivision (1)(b)(i)(B) of this
28 section, has ever pled guilty to, pled nolo contendere to, or been found
29 guilty of any of the following:

30 (I) Murder in the first degree pursuant to section 28-303;

31 (II) Murder in the second degree pursuant to section 28-304;

- 1 (III) Manslaughter pursuant to section 28-305;
- 2 (IV) Assault in the first degree pursuant to section 28-308;
- 3 (V) Assault in the second degree pursuant to section 28-309;
- 4 (VI) Assault in the third degree pursuant to section 28-310;
- 5 (VII) Stalking pursuant to section 28-311.03;
- 6 (VIII) Violation of section 28-311.08 requiring registration under
- 7 the act pursuant to subsection (6) of section 28-311.08;
- 8 (IX) Kidnapping pursuant to section 28-313;
- 9 (X) False imprisonment pursuant to section 28-314 or 28-315;
- 10 (XI) Sexual abuse of an inmate or parolee in the first degree
- 11 pursuant to section 28-322.02;
- 12 (XII) Sexual abuse of an inmate or parolee in the second degree
- 13 pursuant to section 28-322.03;
- 14 (XIII) Sexual abuse of a protected individual pursuant to section
- 15 28-322.04;
- 16 (XIV) Incest pursuant to section 28-703;
- 17 (XV) Child abuse pursuant to subdivision (1)(d) or (e) of section
- 18 28-707;
- 19 (XVI) Enticement by electronic communication device pursuant to
- 20 section 28-833; or
- 21 (XVII) Attempt, solicitation, aiding or abetting, being an
- 22 accessory, or conspiracy to commit an offense listed in subdivisions (1)
- 23 (b)(i)(A)(I) through (1)(b)(i)(A)(XVI) of this section.
- 24 (B) In order for the Sex Offender Registration Act to apply to the
- 25 offenses listed in subdivisions (1)(b)(i)(A)(I), (II), (III), (IV), (V),
- 26 (VI), (VII), (IX), and (X) of this section, a court shall have found that
- 27 evidence of sexual penetration or sexual contact, as those terms are
- 28 defined in section 28-318, was present in the record, which shall include
- 29 consideration of the factual basis for a plea-based conviction and
- 30 information contained in the presentence report;
- 31 (ii) Has ever pled guilty to, pled nolo contendere to, or been found

1 guilty of any offense that is substantially equivalent to a registrable
2 offense under subdivision (1)(b)(i) of this section by any village, town,
3 city, state, territory, commonwealth, or other jurisdiction of the United
4 States, by the United States Government, by court-martial or other
5 military tribunal, or by a foreign jurisdiction, notwithstanding a
6 procedure comparable in effect to that described under section 29-2264 or
7 any other procedure to nullify a conviction other than by pardon; or

8 (iii) Enters the state and is required to register as a sex offender
9 under the laws of another village, town, city, state, territory,
10 commonwealth, or other jurisdiction of the United States.

11 (c) In addition to the registrable offenses under subdivisions (1)
12 (a) and (b) of this section, the Sex Offender Registration Act applies to
13 any person who on or after January 1, 2020:

14 (i) Has ever pled guilty to, pled nolo contendere to, or been found
15 guilty of sexual abuse of a detainee under section 28-322.05; or

16 (ii) Has ever pled guilty to, pled nolo contendere to, or been found
17 guilty of any offense that is substantially equivalent to a registrable
18 offense under subdivision (1)(c)(i) of this section by any village, town,
19 city, state, territory, commonwealth, or other jurisdiction of the United
20 States, by the United States Government, by court-martial or other
21 military tribunal, or by a foreign jurisdiction, notwithstanding a
22 procedure comparable in effect to that described under section 29-2264 or
23 any other procedure to nullify a conviction other than by pardon.

24 (d) In addition to the registrable offenses under subdivisions (1)
25 (a), (b), and (c) of this section, the Sex Offender Registration Act
26 applies to any person who on or after January 1, 2023:

27 (i) Has ever pled guilty to, pled nolo contendere to, or been found
28 guilty of human trafficking under subsection (1) or (2) of section
29 28-831, and the court determines either by notification of sex offender
30 registration responsibilities or notation in the sentencing order that
31 the human trafficking was sex trafficking or sex trafficking of a minor

1 and not solely labor trafficking or labor trafficking of a minor; or

2 (ii) Has ever pled guilty to, pled nolo contendere to, or been found
3 guilty of any offense that is substantially equivalent to a registrable
4 offense under subdivision (1)(d)(i) of this section by any village, town,
5 city, state, territory, commonwealth, or other jurisdiction of the United
6 States, by the United States Government, by court-martial or other
7 military tribunal, or by a foreign jurisdiction, notwithstanding a
8 procedure comparable in effect to that described under section 29-2264 or
9 any other procedure to nullify a conviction other than by pardon.

10 (2) A person appealing a conviction of a registrable offense under
11 this section shall be required to comply with the act during the appeals
12 process.

13 **Sec. 20.** Section 29-4019, Revised Statutes Cumulative Supplement,
14 2024, is amended to read:

15 29-4019 (1) When sentencing a person convicted of an offense which
16 requires lifetime community supervision upon release pursuant to section
17 83-174.03, the sentencing court shall:

18 (a) Provide written notice to the defendant that he or she shall be
19 subject to lifetime community supervision by the Department of
20 Correctional Services Division ~~of Parole Supervision~~ upon release from
21 incarceration or civil commitment. The written notice shall inform the
22 defendant (i) that he or she shall be subject to lifetime community
23 supervision by the department ~~division~~ upon release and that the
24 department ~~division~~ shall conduct a risk assessment and evaluation to
25 determine the conditions of community supervision which will minimize, in
26 the least restrictive manner that is compatible with public safety, the
27 risk of the defendant committing additional offenses, (ii) that a
28 violation of any of the conditions of community supervision imposed by
29 the department ~~division~~ may result in the revision of existing
30 conditions, the addition of new conditions, a recommendation that civil
31 commitment proceedings should be instituted, or criminal prosecution, and

1 (iii) of his or her right to challenge the determination of the
2 conditions of community supervision by the department ~~division~~ and the
3 right to a periodic review of the conditions of community supervision
4 pursuant to section 83-174.03 to determine if the conditions are still
5 necessary to protect the public;

6 (b) Require the defendant to read and sign a form stating that the
7 duty of the defendant to comply with the conditions of community
8 supervision and his or her rights to challenge the conditions of
9 community supervision imposed by the department ~~division~~ has been
10 explained; and

11 (c) Retain a copy of the written notification signed by the
12 defendant.

13 (2) Prior to the release of a person serving a sentence for an
14 offense requiring lifetime community supervision ~~by the Division of~~
15 ~~Parole Supervision~~ pursuant to section 83-174.03, the Department of
16 Correctional Services, the Department of Health and Human Services, or a
17 city or county correctional or jail facility shall:

18 (a) Provide written notice to the person that he or she shall be
19 subject to lifetime community supervision by the Department of
20 Correctional Services ~~division~~ upon release from incarceration. The
21 written notice shall inform the person (i) that he or she shall be
22 subject to lifetime community supervision by the department ~~division~~ upon
23 release and that the department ~~division~~ shall conduct a risk assessment
24 and evaluation of the defendant to determine the conditions of community
25 supervision which will minimize, in the least restrictive manner that is
26 compatible with public safety, the risk of the person committing
27 additional offenses, (ii) that a violation of any of the conditions of
28 community supervision imposed by the department ~~division~~ may result in
29 the revision of existing conditions, the addition of new conditions, a
30 recommendation that civil commitment proceedings should be instituted, or
31 criminal prosecution, and (iii) of his or her right to challenge the

1 determination of the conditions of community supervision by the
2 department ~~division~~ and the right to a periodic review of the conditions
3 of community supervision pursuant to section 83-174.03 to determine if
4 the conditions are still necessary to protect the public;

5 (b) Require the defendant to read and sign a form stating that the
6 duty of the defendant to comply with the conditions of community
7 supervision and his or her right to challenge the conditions of community
8 supervision imposed by the department ~~division~~ has been explained; and

9 (c) Retain a copy of the written notification signed by the person.

10 **Sec. 21.** Section 43-1401, Reissue Revised Statutes of Nebraska, is
11 amended to read:

12 43-1401 For purposes of sections 43-1401 to 43-1418:

13 (1) Except as provided in sections 43-1411 and 43-1414, child means
14 ~~Child shall mean~~ a child under the age of eighteen years born out of
15 wedlock;

16 (2) Child born out of wedlock means ~~shall mean~~ a child whose parents
17 were not married to each other at the time of ~~its~~ birth, except that a
18 child shall not be considered as born out of wedlock if the ~~its~~ parents
19 were married at the time of the child's ~~its~~ conception but divorced at
20 the time of ~~its~~ birth. The definition of legitimacy or illegitimacy for
21 other purposes shall not be affected by ~~the provisions of such~~ sections
22 43-1401 to 43-1418; and

23 (3) Support includes ~~shall include~~ reasonable education.

24 **Sec. 22.** Section 43-1411, Revised Statutes Cumulative Supplement,
25 2024, is amended to read:

26 43-1411 (1) A civil proceeding to establish the paternity of a child
27 may be instituted, in the court of the district where the child is
28 domiciled or found or, for cases under the Uniform Interstate Family
29 Support Act, where the alleged father is domiciled, by:

30 (a) The mother or the alleged father of such child, or by a person
31 who has reason to believe he is the biological father of the child,

1 either during pregnancy or within four years after the child's birth,
2 unless:

3 (i) A valid consent or relinquishment has been made pursuant to
4 sections 43-104.08 to 43-104.24 or section 43-105 for purposes of
5 adoption; or

6 (ii) A county court or separate juvenile court has jurisdiction over
7 the custody of the child or jurisdiction over an adoption matter with
8 respect to such child pursuant to sections 43-101 to 43-116; or

9 (b) The guardian or next friend of such child or the state, either
10 during pregnancy or within eighteen years after the child's birth.

11 (2) Summons shall issue and be served as in other civil proceedings,
12 except that such summons may be directed to the sheriff of any county in
13 the state and may be served in any county.

14 (3)(a) {3} Notwithstanding any other provision of law, a person who
15 has reason to believe he is claiming to be the biological father of a
16 child over which the juvenile court already has jurisdiction may file a
17 complaint to intervene in such juvenile proceeding to institute an action
18 to establish the paternity of the child. The complaint to intervene shall
19 be accompanied by an affidavit under oath that the complainant ~~affiant~~
20 believes he is the biological father of the juvenile. No filing fee shall
21 be charged for filing the complaint and affidavit.

22 (b) Upon filing of the complaint and affidavit, the juvenile court
23 may ~~shall~~ enter an order pursuant to section 43-1414 to require genetic
24 testing and to require the juvenile to be made available for genetic
25 testing. The costs of genetic testing shall be paid by the complainant
26 ~~intervenor~~, the county, or the state at the discretion of the juvenile
27 court.

28 (c) This subsection does not authorize intervention by a person
29 whose parental rights to such child have been terminated by the order of
30 any court of competent jurisdiction.

31 (4) For purposes of this section, child means a person under the age

1 of eighteen years, regardless of whether the person was born out of
2 wedlock.

3 **Sec. 23.** Section 43-1414, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 43-1414 (1)(a) ~~(1)~~ In any proceeding to establish paternity, the
6 court may, on its own motion, or shall, on a timely request of a party,
7 after notice and hearing, require the child, the mother, and the alleged
8 father to submit to genetic testing to be performed on blood or any other
9 appropriate genetic testing material. Failure to comply with such
10 requirement for genetic testing shall constitute contempt and may be
11 dealt with in the same manner as other contempts. If genetic testing is
12 required, the court shall direct that inherited characteristics be
13 determined by appropriate testing procedures and shall appoint an expert
14 in genetic testing and qualified as an examiner of genetic markers to
15 analyze and interpret the results and to report to the court. The court
16 shall determine the number of experts required.

17 (b) For purposes of this subsection, child means a person under the
18 age of eighteen years, regardless of whether the person was born out of
19 wedlock.

20 (2) In any proceeding to establish paternity, the Department of
21 Health and Human Services, county attorneys, and authorized attorneys
22 have the authority to require the child, the mother, and the alleged
23 father to submit to genetic testing to be performed on blood or any other
24 appropriate genetic testing material. All genetic testing shall be
25 performed by a laboratory accredited by the College of American
26 Pathologists or any other national accrediting body or public agency
27 which has requirements that are substantially equivalent to or more
28 comprehensive than those of the college.

29 (3) Except as authorized under sections 43-1414 to 43-1418, a person
30 shall not disclose information obtained from genetic paternity testing
31 that is done pursuant to such sections.

1 (4) If an alleged father who is tested as part of an action under
2 such sections is found to be the child's father, the testing laboratory
3 shall retain the genetic testing material of the alleged father, mother,
4 and child for no longer than the period of years prescribed by the
5 national standards under which the laboratory is accredited. If a man is
6 found not to be the child's father, the testing laboratory shall destroy
7 the man's genetic testing material in the presence of a witness after
8 such material is used in the paternity action. The witness may be an
9 individual who is a party to the destruction of the genetic testing
10 material. After the man's genetic testing material is destroyed, the
11 testing laboratory shall make and keep a written record of the
12 destruction and have the individual who witnessed the destruction sign
13 the record. The testing laboratory shall also expunge its records
14 regarding the genetic paternity testing performed on the genetic testing
15 material in accordance with the national standards under which the
16 laboratory is accredited. The testing laboratory shall retain the genetic
17 testing material of the mother and child for no longer than the period of
18 years prescribed by the national standards under which the laboratory is
19 accredited. After a testing laboratory destroys an individual's genetic
20 testing material as provided in this subsection, it shall notify the
21 adult individual, or the parent or legal guardian of a minor individual,
22 by certified mail that the genetic testing material was destroyed.

23 (5) A testing laboratory is required to protect the confidentiality
24 of genetic testing material, except as required for a paternity
25 determination. The court and its officers shall not use or disclose
26 genetic testing material for a purpose other than the paternity
27 determination.

28 (6) A person shall not buy, sell, transfer, or offer genetic testing
29 material obtained under sections 43-1414 to 43-1418.

30 (7) A testing laboratory shall annually have an independent audit
31 verifying the contracting laboratory's compliance with this section. The

1 audit shall not disclose the names of, or otherwise identify, the test
2 subjects required to submit to testing during the previous year. The
3 testing laboratory shall forward the audit to the department.

4 (8) Any person convicted of violating this section shall be guilty
5 of a Class IV misdemeanor for the first offense and a Class III
6 misdemeanor for the second or subsequent offense.

7 (9) For purposes of sections 43-1414 to 43-1418, an expert in
8 genetic testing means a person who has formal doctoral training or
9 postdoctoral training in human genetics.

10 **Sec. 24.** Section 47-624, Reissue Revised Statutes of Nebraska, is
11 amended to read:

12 47-624 The division shall:

13 (1) Collaborate with the Office of Probation Administration ~~, the~~
14 ~~Division of Parole Supervision,~~ and the Department of Correctional
15 Services to develop and implement a plan to establish statewide operation
16 and use of a continuum of community correctional facilities and programs;

17 (2) Develop, in consultation with the probation administrator and
18 the Director of Correctional ~~Supervision and Services of the Division of~~
19 ~~Parole Supervision,~~ standards for the use of community correctional
20 facilities and programs by the Nebraska Probation System and the parole
21 system;

22 (3) Collaborate with the Office of Probation Administration ~~, the~~
23 ~~Division of Parole Supervision,~~ and the Department of Correctional
24 Services on the development of additional reporting centers as set forth
25 in section 47-624.01;

26 (4) Analyze and promote the consistent use of offender risk
27 assessment tools;

28 (5) Educate the courts, the Board of Parole, criminal justice system
29 stakeholders, and the general public about the availability, use, and
30 benefits of community correctional facilities and programs;

31 (6) Enter into and administer contracts, if necessary, to carry out

1 the purposes of the Community Corrections Act;

2 (7) In order to ensure adequate funding for substance abuse
3 treatment programs, consult with the probation administrator and the
4 Director of Correctional Supervision and Services of the Division of
5 Parole Supervision and develop or assist with the development of programs
6 as provided in subdivision (14) of section 29-2252 and subdivision (20)
7 ~~{8}~~ of section 83-173 ~~83-1,102~~;

8 (8) Study substance abuse and mental health treatment services in
9 and related to the criminal justice system, recommend improvements, and
10 evaluate the implementation of improvements;

11 (9) Research and evaluate existing community correctional facilities
12 and programs, within the limits of available funding;

13 (10) Develop standardized definitions of outcome measures for
14 community correctional facilities and programs, including, but not
15 limited to, recidivism, employment, and substance abuse;

16 (11) Report annually to the Legislature and the Governor on the
17 development and performance of community correctional facilities and
18 programs. The report submitted to the Legislature shall be submitted
19 electronically. The report shall include, but not be limited to, the
20 following:

21 (a) A description of community correctional facilities and programs
22 currently serving offenders in Nebraska, which includes the following
23 information:

24 (i) The target population and geographic area served by each
25 facility or program, eligibility requirements, and the total number of
26 offenders utilizing the facility or program over the past year;

27 (ii) Services, programs, assessments, case management, supervision,
28 and tools provided for offenders at the facility, in the program, or
29 under the supervision of a governmental agency in any capacity;

30 (iii) The costs of operating the facility or program and the cost
31 per offender; and

1 (iv) The funding sources for the facility or program;

2 (b) The progress made in expanding community correctional facilities
3 and programs statewide and an analysis of the need for additional
4 community corrections services;

5 (c) An analysis of the impact community correctional facilities and
6 programs have on the number of offenders incarcerated within the
7 Department of Correctional Services; and

8 (d) The recidivism rates and outcome data for probationers,
9 parolees, and problem-solving-court clients participating in community
10 corrections programs;

11 (12) Grant funds to entities including local governmental agencies,
12 nonprofit organizations, and behavioral health services which will
13 support the intent of the Community Corrections Act act;

14 (13) Manage all offender data acquired by the division in a
15 confidential manner and develop procedures to ensure that identifiable
16 information is not released;

17 (14) Establish and administer grants, projects, and programs for the
18 operation of the division; and

19 (15) Perform such other duties as may be necessary to carry out the
20 policy of the state established in the act.

21 **Sec. 25.** Section 47-624.01, Reissue Revised Statutes of Nebraska, is
22 amended to read:

23 47-624.01 (1) The division shall collaborate with the Office of
24 Probation Administration, ~~the Division of Parole Supervision,~~ and the
25 Department of Correctional Services in developing a plan for the
26 implementation and funding of reporting centers in Nebraska.

27 (2) The plan shall include recommended locations for at least one
28 reporting center in each district court judicial district that currently
29 lacks such a center and shall prioritize the recommendations for
30 additional reporting centers based upon need.

31 (3) The plan shall also identify and prioritize the need for

1 expansion of reporting centers in those district court judicial districts
2 which currently have a reporting center but have an unmet need for
3 additional reporting center services due to capacity, distance, or
4 demographic factors.

5 **Sec. 26.** Section 47-627, Reissue Revised Statutes of Nebraska, is
6 amended to read:

7 47-627 The director shall develop and maintain a uniform crime data
8 analysis system in Nebraska which shall include, but need not be limited
9 to, the number of offenses, arrests, charges, probation admissions,
10 probation violations, probation discharges, participants in specialized
11 community corrections programs, admissions to and discharges from
12 problem-solving courts, admissions to and discharges from the Department
13 of Correctional Services, parole reviews, parole hearings, releases on
14 parole, parole violations, and parole discharges. The data shall be
15 categorized by statutory crime. The data shall be collected from the
16 Board of Parole, the State Court Administrator, the Department of
17 Correctional Services, ~~the Division of Parole Supervision,~~ the Office of
18 Probation Administration, the Nebraska State Patrol, counties, local law
19 enforcement, and any other entity associated with criminal justice. The
20 division and the Supreme Court shall have access to such data to
21 implement the Community Corrections Act.

22 **Sec. 27.** Section 47-629, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 47-629 (1) The Board of Parole may parole an offender to a community
25 correctional facility or program pursuant to guidelines developed by the
26 division.

27 (2) The Department of Correctional Services ~~and the Division of~~
28 ~~Parole Supervision~~ shall utilize community correctional facilities and
29 programs as appropriate.

30 **Sec. 28.** Section 47-903, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 47-903 For purposes of the Office of Inspector General of the
2 Nebraska Correctional System Act, the following definitions apply:

3 (1) Administrator means a person charged with administration of a
4 program, an office, or a division of the department or administration of
5 a private agency;

6 (2) Department means the Department of Correctional Services;

7 (3) Director means the Director of Correctional Services;

8 ~~(4) Division of Parole Supervision means the division created~~
9 ~~pursuant to section 83-1,100;~~

10 (4) ~~(5)~~ Inspector General means the Inspector General of the
11 Nebraska Correctional System appointed under section 47-904;

12 (5) ~~(6)~~ Malfeasance means a wrongful act that the actor has no legal
13 right to do or any wrongful conduct that affects, interrupts, or
14 interferes with performance of an official duty;

15 (6) ~~(7)~~ Management means supervision of subordinate employees;

16 (7) ~~(8)~~ Misfeasance means the improper performance of some act that
17 a person may lawfully do;

18 (8) ~~(9)~~ Obstruction means hindering an investigation, preventing an
19 investigation from progressing, stopping or delaying the progress of an
20 investigation, or making the progress of an investigation difficult or
21 slow;

22 (9) ~~(10)~~ Office means the office of Inspector General of the
23 Nebraska Correctional System and includes the Inspector General and other
24 employees of the office;

25 (10) ~~(11)~~ Private agency means an entity that contracts with the
26 department or contracts to provide services to another entity that
27 contracts with the department; and

28 (11) ~~(12)~~ Record means any recording in written, audio, electronic
29 transmission, or computer storage form, including, but not limited to, a
30 draft, memorandum, note, report, computer printout, notation, or message,
31 and includes, but is not limited to, medical records, mental health

1 records, case files, clinical records, financial records, and
2 administrative records.

3 **Sec. 29.** Section 47-908, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 47-908 All employees of the department ~~, all employees of the~~
6 ~~Division of Parole Supervision,~~ and all owners, operators, managers,
7 supervisors, and employees of private agencies shall cooperate with the
8 office. Cooperation includes, but is not limited to, the following:

9 (1) Provision of full access to and production of records and
10 information. Providing access to and producing records and information
11 for the office is not a violation of confidentiality provisions under any
12 statute, rule, or regulation if done in good faith for purposes of an
13 investigation under the Office of Inspector General of the Nebraska
14 Correctional System Act;

15 (2) Fair and honest disclosure of records and information reasonably
16 requested by the office in the course of an investigation under the act;

17 (3) Encouraging employees to fully comply with reasonable requests
18 of the office in the course of an investigation under the act;

19 (4) Prohibition of retaliation by owners, operators, or managers
20 against employees for providing records or information or filing or
21 otherwise making a complaint to the office;

22 (5) Not requiring employees to gain supervisory approval prior to
23 filing a complaint with or providing records or information to the
24 office;

25 (6) Provision of complete and truthful answers to questions posed by
26 the office in the course of an investigation; and

27 (7) Not willfully interfering with or obstructing the investigation.

28 **Sec. 30.** Section 47-919, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 47-919 The department ~~Division of Parole Supervision~~ shall provide
31 the Public Counsel and the Inspector General with direct computer access

1 to all computerized records, reports, and documents maintained in
2 connection with administration of the Nebraska parole system, except that
3 access for the Public Counsel and the Inspector General to a parolee's
4 medical or mental health records shall be subject to the parolee's
5 consent.

6 **Sec. 31.** Section 47-1102, Revised Statutes Cumulative Supplement,
7 2024, is amended to read:

8 47-1102 (1) The Legislature finds that studies have shown that post-
9 prison outcomes tend to be better for committed offenders who participate
10 in work release programs prior to discharge from custody. Specifically,
11 findings indicate that committed offenders who participated in work
12 release programs had a higher likelihood of obtaining post-release
13 employment within the first calendar quarter after release and also had a
14 significantly lower rate of recidivism than committed offenders who did
15 not participate in work release programs prior to discharge from custody.
16 In addition, studies indicate that committed offenders who participated
17 in privately operated work release programs were significantly more
18 likely to become employed after release.

19 (2) In light of these findings, and in order to give the Board of
20 Parole and the Department of Correctional Services additional options for
21 the placement of committed offenders, it is the intent of the
22 Legislature:

23 (a) To increase the number of committed offenders in the Nebraska
24 correctional system who are exposed to work release prior to discharge
25 from custody; and

26 (b) To do so in settings that also offer therapy, programming,
27 treatment, vocational training, and educational classes.

28 (3) To achieve these goals, the purpose of the Community Work
29 Release and Reentry Centers Act is to empower the ~~Division of Parole~~
30 ~~Supervision and the~~ Department of Correctional Services to contract with
31 private providers to establish community work release and reentry centers

1 at various locations throughout the State of Nebraska.

2 **Sec. 32.** Section 47-1103, Revised Statutes Cumulative Supplement,
3 2024, is amended to read:

4 47-1103 For purposes of the Community Work Release and Reentry
5 Centers Act:

6 (1) Advisory board means the Reentry Continuity Advisory Board
7 established in section 47-1117;

8 (2) Board means the Board of Parole;

9 (3) Committed offender has the same meaning as in section 83-170;

10 (4) Community work release and reentry center or center means a
11 residential home, halfway house, or other facility operated by a private
12 provider pursuant to an agreement in writing ~~either with the division or~~
13 ~~the department~~ for providing housing and supervision of committed
14 offenders placed in the center by the department ~~division~~ for work
15 release and for vocational training, education, programming, or
16 behavioral health or mental health treatment;

17 (5) Department means the Department of Correctional Services;

18 ~~(6) Division means the Division of Parole Supervision;~~

19 (6) ~~(7)~~ Individualized release plan means a detailed written plan
20 outlining a committed offender's future vocational goals, training,
21 employment, and needed treatment services following the committed
22 offender's release from a community work release and reentry center;

23 (7) ~~(8)~~ Private provider means a partnership, corporation,
24 association, joint venture, organization, or similar entity which is
25 operated on a nonprofit basis and which, under a contract with ~~either the~~
26 ~~division or~~ the department, has agreed to operate a community work
27 release and reentry center pursuant to the act;

28 (8) ~~(9)~~ Probation administration means the Office of Probation
29 Administration;

30 (9) ~~(10)~~ Reentering person means an individual who is subject to
31 supervision by the board ~~division~~ or probation administration, not

1 including juvenile probation, or who was recently in the custody of the
2 department or a county jail and was released with no supervision;

3 ~~(10)~~ ~~(11)~~ Reentry housing means temporary housing for reentering
4 persons, generally in the first year following a period of incarceration;
5 and

6 ~~(11)(a)~~ ~~(12)(a)~~ Reentry housing facility means a facility which is
7 owned or operated by a private organization, whether nonprofit or for-
8 profit, that receives direct payment from the board, ~~division~~, probation
9 administration, or department to provide reentry housing.

10 (b) Reentry housing facility includes, but is not limited to, a
11 community work release and reentry center.

12 (c) Reentry housing facility does not include a health care facility
13 as defined in section 71-413.

14 **Sec. 33.** Section 47-1104, Revised Statutes Cumulative Supplement,
15 2024, is amended to read:

16 47-1104 (1) The department ~~division~~ may place a parole-eligible
17 committed offender at a community work release and reentry center as
18 provided in the Community Work Release and Reentry Centers Act.

19 (2) Any parole-eligible committed offender placed at a community
20 work release and reentry center pursuant to the act:

21 (a) Shall be under the continuing jurisdiction and authority of the
22 department and board as if the committed offender was selected for
23 release on ordinary parole status as provided for in section 83-192; and

24 (b) May be subsequently released by the board on ordinary parole
25 status as provided for in section 83-192.

26 (3) The department may place a committed offender whose sentence
27 includes a term of post-release supervision and who is within three years
28 of his or her release date at a community work release and reentry center
29 as provided in the act. Any such committed offender placed at a center
30 shall be under the continuing jurisdiction and authority of the
31 department.

1 **Sec. 34.** Section 47-1105, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 47-1105 (1) The ~~division and the~~ department may exercise all powers
4 and perform all duties necessary and proper for carrying out their
5 responsibilities under the Community Work Release and Reentry Centers
6 Act.

7 (2) The ~~division and the~~ department may use designated funds
8 provided by the Legislature to enter into agreements with private
9 providers for the development and operation of community work release and
10 reentry centers to be established at various locations throughout the
11 state. Any such agreement shall require a private provider to:

12 (a) Establish a contract with public or private employers to provide
13 employment for committed offenders placed at the center;

14 (b) Assist any committed offender placed at the center to obtain and
15 maintain employment in the community;

16 (c) Provide vocational training, education, programming, and
17 treatment for issues related to the criminogenic needs of any committed
18 offender placed at the center; and

19 (d) Otherwise direct and supervise the activities and behavior of
20 any committed offender placed at the center as provided in the act.

21 (3) In an agreement under this section, the ~~division or the~~
22 department may include contractual requirements that obligate the private
23 provider to offer to any committed offender placed at the center:

24 (a) Specialized educational or vocational training; and

25 (b) Other programming that will address the mental health,
26 behavioral health, or substance abuse treatment needs of such committed
27 offender.

28 (4) An agreement under this section shall require the community work
29 release and reentry center to establish programs, rules, and enforcement
30 systems:

31 (a) Regarding the behavior of committed offenders;

1 (b) To ensure that committed offenders seek and retain continuous
2 employment;

3 (c) For the treatment of committed offenders for substance abuse;

4 (d) To ensure that committed offenders only leave the center for
5 purposes of work or for other specified and approved activities,
6 including, but not limited to, job interviews, medical appointments,
7 treatment, and outings to visit family;

8 (e) To ensure that committed offenders consistently participate in
9 all necessary therapy, programming, treatment, vocational training, and
10 educational classes; and

11 (f) To ensure that committed offenders maintain their scheduled work
12 hours.

13 **Sec. 35.** Section 47-1106, Revised Statutes Cumulative Supplement,
14 2024, is amended to read:

15 47-1106 The ~~division and the~~ department shall set standards for the
16 appropriate staffing levels of community work release and reentry
17 centers. The ~~division and the~~ department shall require each center to:

18 (1) Be under the supervision and control of a designated center
19 director approved by the ~~division or the~~ department;

20 (2) Be adequately staffed twenty-four hours per day, including on
21 weekends and holidays; and

22 (3) Assign an individual counselor to each committed offender
23 assigned to the center.

24 **Sec. 36.** Section 47-1107, Revised Statutes Cumulative Supplement,
25 2024, is amended to read:

26 47-1107 (1) The ~~division and the~~ department shall require each
27 community work release and reentry center to establish an individualized
28 release plan for each committed offender assigned to the center. The
29 staff of a center shall assist the ~~division and the~~ department in making
30 reasonable advance preparations for the release of such committed
31 offenders.

1 (2) If a parole-eligible committed offender is released from a
2 center, the offender shall be subject to parole conditions set by the
3 board and under the supervision of a district parole officer assigned by
4 ~~the division~~ pursuant to section 83-1,104. The individualized release
5 plan for a parole-eligible committed offender shall be developed in
6 coordination with the assigned district parole officer.

7 (3) If a committed offender whose sentence includes a term of post-
8 release supervision is released from a center, the offender shall be
9 subject to the conditions of his or her order of post-release supervision
10 and under the supervision of a district probation officer. The
11 individualized release plan for such an offender shall be developed in
12 coordination with the assigned district probation officer.

13 **Sec. 37.** Section 47-1108, Revised Statutes Cumulative Supplement,
14 2024, is amended to read:

15 47-1108 (1) The ~~division and the~~ department shall set requirements
16 for the maintenance of the individual records of committed offenders
17 assigned to a community work release and reentry center.

18 (2) The ~~division and the~~ department shall require each community
19 work release and reentry center to make periodic reports to ~~the division~~
20 ~~and the~~ department on the performance of each committed offender assigned
21 to the center.

22 **Sec. 38.** Section 47-1109, Revised Statutes Cumulative Supplement,
23 2024, is amended to read:

24 47-1109 The ~~division and the~~ department shall establish an internal
25 system for assessing the achievements of community work release and
26 reentry centers and the effectiveness of the Community Work Release and
27 Reentry Centers Act as a whole. The ~~division and the~~ department shall
28 develop and maintain measurable goals and objectives for such assessment.

29 **Sec. 39.** Section 47-1110, Revised Statutes Cumulative Supplement,
30 2024, is amended to read:

31 47-1110 (1) The department ~~division~~ shall designate a parole officer

1 to monitor the performance of each parole-eligible committed offender who
2 is assigned to a community work release and reentry center. The
3 designated parole officer shall be required to periodically report to the
4 department ~~division~~ on the progress of the committed offender.

5 (2) The department shall designate a correctional officer to monitor
6 the performance of each committed offender who is assigned to a community
7 work release and reentry center under subsection (3) of section 47-1104.
8 The designated correctional officer shall be required to periodically
9 report to the department on the progress of the committed offender.

10 **Sec. 40.** Section 47-1111, Revised Statutes Cumulative Supplement,
11 2024, is amended to read:

12 47-1111 The ~~division and the~~ department shall develop an internal
13 program to conduct annual reviews of the performance of each community
14 work release and reentry center. A senior staff person of the ~~division~~
15 ~~and the~~ department shall visit each center at least twice each year.

16 **Sec. 41.** Section 47-1113, Revised Statutes Cumulative Supplement,
17 2024, is amended to read:

18 47-1113 The ~~division and the~~ department may allow a community work
19 release and reentry center to have access to all of the records,
20 documents, and reports in the custody of the ~~division or the~~ department,
21 other than presentence investigation reports, that relate to any
22 committed offender who is assigned to the center.

23 **Sec. 42.** Section 47-1114, Revised Statutes Cumulative Supplement,
24 2024, is amended to read:

25 47-1114 (1) By July 1, 2026, the ~~division and the~~ department shall
26 develop a strategic plan and procedure to allow private providers to bid
27 on agreements to establish community work release and reentry centers
28 pursuant to the Community Work Release and Reentry Centers Act.

29 (2) It is the intent of the Legislature to appropriate one million
30 dollars from the General Fund to carry out the Community Work Release and
31 Reentry Centers Act.

1 **Sec. 43.** Section 47-1115, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 47-1115 (1) The department, with the assistance of the board, shall
4 establish a program to encourage the development of reentry housing,
5 coordinate the provisions of reentry services, and provide standards for
6 reentry housing. Through this program, the department shall:

7 (a) Establish minimum standards for reentry housing facilities,
8 including requirements related to health and safety, insurance,
9 evaluations, and inspections, with input from the advisory committee;

10 (b) Monitor compliance with these minimum standards and investigate
11 suspected violations;

12 (c) Coordinate evaluations of reentry housing facilities based on
13 living conditions, staffing, programming, and other criteria;

14 (d) Communicate with relevant agencies regarding evaluation results
15 and compliance with minimum standards;

16 (e) Facilitate communication between the department, ~~division,~~
17 board, probation administration, and reentry housing facilities regarding
18 reentering persons in need of housing and the availability of housing to
19 meet such needs;

20 (f) Engage in regular discussions with entities which organize and
21 prioritize housing services for people experiencing homelessness or at
22 risk of homelessness in Nebraska;

23 (g) Track data on costs, utilization, and outcomes for reentry
24 housing within the state and use this data to determine trends and
25 project future needs and costs; and

26 (h) Electronically submit an annual report to the Legislature, the
27 Supreme Court, and the Governor which describes the status of housing for
28 reentering persons in Nebraska. The report shall include details on
29 housing-related expenditures, characteristics of reentry housing
30 facilities and other places which provide housing for reentering persons,
31 characteristics of the individuals receiving financial assistance for

1 housing, and recommendations for improving the quality and availability
2 of housing for reentering persons in the state.

3 (2) The department and board may use available funds to encourage
4 development of quality, safe reentry housing and to assist existing
5 reentry housing facilities in making improvements for the benefit of
6 reentering persons and public safety.

7 **Sec. 44.** Section 47-1116, Revised Statutes Cumulative Supplement,
8 2024, is amended to read:

9 47-1116 (1) Reentry housing facilities shall cooperate with
10 investigations and evaluations conducted pursuant to the Community Work
11 Release and Reentry Centers Act and shall provide the department, board,
12 ~~division,~~ probation administration, and the Office of Public Counsel with
13 reasonable access to facilities and records related to the provision of
14 reentry housing.

15 (2) The department or board may request the State Fire Marshal to
16 investigate any reentry housing facility for fire safety under section
17 81-502. The State Fire Marshal shall assess a fee for such inspection
18 under section 81-505.01 payable by the facility. The State Fire Marshal
19 may delegate the authority to make such inspections to qualified local
20 fire prevention personnel under section 81-502.

21 (3) The department or board may request a county, city, or village
22 to inspect any reentry housing facility for the purpose of administering
23 or enforcing the state building code or an applicable local building or
24 construction code enacted pursuant to the Building Construction Act, if
25 the county, city, or village has taken on the responsibility of code
26 enforcement. A county, city, or village may assess fees for such an
27 inspection under section 71-6406.

28 (4) The department or board shall promptly notify a reentry housing
29 facility and relevant agencies if there is reason to believe conditions
30 in the facility present an imminent threat to the health or safety of
31 reentering persons residing at the facility.

1 (5) The department shall work with the board, ~~division~~, probation
2 administration, and the advisory board to establish a speedy process by
3 which reentry housing facilities may contest the findings of any
4 investigation or evaluation pursuant to the Community Work Release and
5 Reentry Centers Act.

6 **Sec. 45.** Section 47-1117, Revised Statutes Cumulative Supplement,
7 2024, is amended to read:

8 47-1117 (1) The Reentry Continuity Advisory Board is created. The
9 board shall include the following members:

- 10 (a) The Inspector General of the Nebraska Correctional System;
11 (b) The Director of Correctional Services or his or her designee;
12 (c) The chairperson of the Board of Parole or his or her designee;
13 (d) The probation administrator or his or her designee; and
14 (e) Five additional members to be appointed by the Governor. Such
15 members shall include:
16 (i) An individual with experience in reentry and restorative justice
17 service delivery;
18 (ii) A victims' rights representative;
19 (iii) A formerly incarcerated individual;
20 (iv) An individual with expertise in mental or behavioral health;
21 and
22 (v) An individual with experience in public policy.

23 (2) The advisory board shall select a chairperson from among its
24 members.

25 (3) The advisory board shall identify areas for improving continuity
26 and collaboration among the department, ~~the division~~, the board,
27 probation administration, and any other relevant criminal justice
28 entities and offer advice on practices that will enhance the continuity
29 of reentry services and reentry housing for individuals in the criminal
30 justice system.

31 (4) The advisory board shall:

- 1 (a) Conduct regular meetings;
- 2 (b) Provide advice and assistance to the department and board
- 3 relating to reentry housing in Nebraska;
- 4 (c) Promote the interests of reentering persons and their families;
- 5 (d) Promote public safety through effective reintegration into the
- 6 community;
- 7 (e) Provide input on the process of evaluating reentry housing
- 8 facilities;
- 9 (f) Engage with neighborhood groups and other stakeholders;
- 10 (g) Provide reports as requested by the department and board; and
- 11 (h) Engage in other activities as requested by the department and
- 12 board.
- 13 (5) The advisory board shall convene at least quarterly. The members
- 14 described in subdivisions (1)(b), (c), and (d) of this section shall
- 15 attend each meeting of the advisory board and share and present
- 16 information relevant to the mission of the advisory board.
- 17 (6) The department, ~~division~~, board, and probation administration
- 18 shall provide information requested by the advisory board related to its
- 19 mission. This shall include, but is not limited to, information
- 20 regarding:
- 21 (a) The use of evidence-based risk assessments and evidence-based
- 22 programming;
- 23 (b) Participation in rehabilitation and education programs;
- 24 (c) Treatment and programming offered, including vocational
- 25 training, substance abuse treatment, cognitive-behavioral therapy, and
- 26 mental health counseling;
- 27 (d) Population and demographic data;
- 28 (e) Use of and need for transitional housing and reentry housing;
- 29 (f) Identified gaps in services;
- 30 (g) Recidivism;
- 31 (h) Institutional conduct; and

1 (i) Post-release and reentry planning and services;

2 (7) The advisory board shall conduct periodic evaluations of the
3 effectiveness of the collaborative efforts and reentry programs offered
4 by the department, ~~division~~, board, probation administration, and other
5 criminal justice agencies. Such evaluation shall be accomplished using an
6 integrated reentry and rehabilitation framework, which shall include an
7 examination of:

8 (a) The extent to which agencies are conducting comprehensive
9 assessments of criminal justice-involved individuals' needs and risks,
10 including education, employment, housing, mental health, substance abuse,
11 and family support;

12 (b) Whether the agencies are providing individualized reentry
13 planning tailored to the specific needs and circumstances of such
14 individuals, with a focus on addressing criminogenic factors and
15 promoting positive behavioral change;

16 (c) Whether such individuals have access to evidence-based
17 interventions, programs, and services both during and following
18 incarceration, including education, vocational training, mental health
19 treatment, substance abuse counseling, and life skills development; and

20 (d) The extent of collaboration and coordination between the
21 department, parole, probation, other criminal justice agencies,
22 community-based organizations, and other stakeholders.

23 (8) The advisory board shall assist probation administration and ~~and~~
24 the department ~~, and the division~~ in implementing performance metrics for
25 staff as provided in sections 29-2243 and 83-171.01. The advisory board
26 shall regularly review such agencies' implementation and use of such
27 performance metrics and offer updated guidance to ensure that such
28 metrics are aligned with best practices, stakeholder input, and the
29 evolving goals and priorities of the criminal justice system.

30 (9) On or before October 1, 2025, and on or before each October 1
31 thereafter, the advisory board shall electronically submit a report to

1 the Judiciary Committee of the Legislature. The report shall include data
2 regarding baselines, goals, efforts undertaken to achieve such goals, and
3 action steps outlined to meet such goals and set objectives. The report
4 shall detail the outcomes of parole decisions, reentry efforts,
5 recidivism rates, and any challenges encountered. The report shall
6 provide stakeholders with a clear understanding of the progress made,
7 challenges faced, and strategies employed throughout the reporting
8 period.

9 **Sec. 46.** Section 47-1119, Revised Statutes Cumulative Supplement,
10 2024, is amended to read:

11 47-1119 The department ~~,—division,~~ and board may adopt and
12 promulgate rules and regulations to carry out the Community Work Release
13 and Reentry Centers Act.

14 **Sec. 47.** Section 69-2403, Reissue Revised Statutes of Nebraska, is
15 amended to read:

16 69-2403 (1) Except as provided in this section ~~and section 69-2409,~~
17 a person shall not:

18 (a) Purchase ~~purchase,~~ lease, rent, or receive transfer of a handgun
19 until he or she has obtained a certificate in accordance with section
20 69-2404; ~~or . Except as provided in this section and section 69-2409, a~~
21 ~~person shall not sell~~

22 (b) Sell, lease, rent, or transfer a handgun to a person who has not
23 obtained a certificate.

24 (2) The certificate shall not be required if:

25 (a) The person acquiring the handgun is a licensed firearms dealer
26 under federal law;

27 (b) The handgun is an antique handgun;

28 (c) The person acquiring the handgun is authorized to do so on
29 behalf of a law enforcement agency;

30 (d) The transfer is a temporary transfer of a handgun and the
31 transferee remains (i) in the line of sight of the transferor or (ii)

1 within the premises of an established shooting facility;

2 (e) The transfer is between a person and his or her spouse, sibling,
3 parent, child, aunt, uncle, niece, nephew, or grandparent;

4 (f) The person acquiring the handgun is a holder of a valid permit
5 under the Concealed Handgun Permit Act; or

6 (g) The person acquiring the handgun is a peace officer as defined
7 in section 69-2429.

8 **Sec. 48.** Section 69-2409.01, Reissue Revised Statutes of Nebraska,
9 is amended to read:

10 69-2409.01 (1)(a) (1) For purposes of criminal history record
11 information checks relating to firearms or explosives sections 69-2401 to
12 69-2425, the Nebraska State Patrol shall be furnished with only such
13 information as may be necessary for the purposes ~~sole purpose~~ of
14 determining whether an individual is:

15 (i) Qualified to receive a permit to carry a concealed handgun under
16 section 69-2433; or

17 (ii) Disqualified ~~disqualified~~ from purchasing or possessing
18 firearms or explosives ~~a handgun~~ pursuant to state or federal law ~~or is~~
19 ~~subject to the disability provisions of 18 U.S.C. 922(d)(4) and (g)(4).~~

20 (b) Such information shall be furnished by the Department of Health
21 and Human Services. The clerks of the various courts shall furnish to the
22 Department of Health and Human Services and Nebraska State Patrol, as
23 soon as practicable but within thirty days after a court order is issued,
24 in a form and manner prescribed by the Department of Health and Human
25 Services or the Nebraska State Patrol, as applicable ~~an order of~~
26 ~~commitment or discharge is issued or after removal of firearm-related~~
27 ~~disabilities pursuant to section 71-963~~, all information necessary to set
28 up and maintain the database required by this section. The clerks of the
29 various courts shall furnish ~~This information shall include (a)~~
30 information regarding those persons who:

31 (i) Are disqualified from purchasing or possessing firearms or

1 explosives pursuant to state or federal law, including, but not limited
2 to, 18 U.S.C. 922(d)(4) and (g)(4);

3 (ii) Are ~~are~~ currently receiving mental health treatment pursuant to
4 a commitment order of a mental health board or who have been
5 discharged; ~~;~~

6 (iii) Have ~~(b) information regarding those persons who have been~~
7 committed to treatment pursuant to section 29-3702; ~~;~~ ~~and~~

8 (iv) Meet the definition of adjudicated as a mental defective or
9 committed to a mental institution pursuant to 27 C.F.R. 478.11, including
10 individuals found not responsible by reason of insanity, found not
11 competent to stand trial, found to lack the mental capacity to manage
12 their own affairs, or otherwise found by a court to be not competent; and

13 (v) Have ~~(c) information regarding those persons who have had~~
14 firearm-related disabilities removed pursuant to section 71-963.

15 (c) The mental health board shall notify the Department of Health
16 and Human Services and the Nebraska State Patrol when an individual's
17 firearm-related ~~such~~ disabilities have been removed pursuant to section
18 71-963.

19 (d) The ~~department~~ ~~Department of Health and Human Services~~ shall
20 ~~also~~ maintain in the database information provided by the clerks of the
21 various courts pursuant to this section and a listing of persons
22 committed to treatment pursuant to section 29-3702.

23 (e) To ensure the accuracy of the database, any information
24 maintained or disclosed under this subsection shall be updated,
25 corrected, modified, or removed, as appropriate, and as soon as
26 practicable, from any database that the state or federal government
27 maintains and makes available to the National Instant Criminal Background
28 Check System. The procedures for furnishing the information shall
29 guarantee that no information is released beyond what is necessary for
30 purposes of this section.

31 (2) In order to comply with sections 69-2401 and 69-2403 to 69-2408

1 and this section, the Nebraska State Patrol shall provide to the chief of
2 police or sheriff of an applicant's place of residence ~~or a licensee in~~
3 ~~the process of a criminal history record check pursuant to section~~
4 ~~69-2411~~ only the information regarding whether or not the applicant is
5 disqualified from purchasing or possessing a handgun.

6 (3) Any person, agency, or mental health board participating in good
7 faith in the reporting or disclosure of records and communications under
8 this section is immune from any liability, civil, criminal, or otherwise,
9 that might result by reason of the action.

10 (4) Any person who intentionally causes the Nebraska State Patrol to
11 request information pursuant to this section without reasonable belief
12 that the named individual has submitted a written application under
13 section 69-2404 or 69-2430 or is otherwise subject to a criminal history
14 record information check pursuant to law ~~has completed a consent form~~
15 ~~under section 69-2410~~ shall be guilty of a Class II misdemeanor in
16 addition to other civil or criminal liability under state or federal law.

17 ~~(5) The Nebraska State Patrol and the Department of Health and Human~~
18 ~~Services shall report electronically to the Clerk of the Legislature on a~~
19 ~~biannual basis the following information about the database: (a) The~~
20 ~~number of total records of persons unable to purchase or possess firearms~~
21 ~~because of disqualification or disability shared with the National~~
22 ~~Instant Criminal Background Check System; (b) the number of shared~~
23 ~~records by category of such persons; (c) the change in number of total~~
24 ~~shared records and change in number of records by category from the~~
25 ~~previous six months; (d) the number of records existing but not able to~~
26 ~~be shared with the National Instant Criminal Background Check System~~
27 ~~because the record was incomplete and unable to be accepted by the~~
28 ~~National Instant Criminal Background Check System; and (e) the number of~~
29 ~~hours or days, if any, during which the database was unable to share~~
30 ~~records with the National Instant Criminal Background Check System and~~
31 ~~the reason for such inability. The report shall also be published on the~~

1 ~~websites of the Nebraska State Patrol and the Department of Health and~~
2 ~~Human Services.~~

3 **Sec. 49.** Section 69-2410, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 69-2410 No importer, manufacturer, or dealer licensed pursuant to 18
6 U.S.C. 923 shall sell or deliver any handgun to another person other than
7 a licensed importer, manufacturer, dealer, or collector until he or she
8 has:

9 (1) ~~(1)(a)~~ Inspected a valid certificate issued to such person
10 pursuant to sections 69-2401, 69-2403 to 69-2408, and 69-2409.01; and

11 (2) ~~(b)~~ Inspected a valid identification containing a photograph of
12 such person which appropriately and completely identifies such person. ~~;~~
13 ~~or~~

14 ~~(2)(a) Obtained a completed consent form from the potential buyer or~~
15 ~~transferee, which form shall be established by the Nebraska State Patrol~~
16 ~~and provided by the licensed importer, manufacturer, or dealer. The form~~
17 ~~shall include the name, address, date of birth, gender, race, and country~~
18 ~~of citizenship of such potential buyer or transferee. If the potential~~
19 ~~buyer or transferee is not a United States citizen, the completed consent~~
20 ~~form shall contain the potential buyer's or transferee's place of birth~~
21 ~~and his or her alien or admission number;~~

22 ~~(b) Inspected a valid identification containing a photograph of the~~
23 ~~potential buyer or transferee which appropriately and completely~~
24 ~~identifies such person;~~

25 ~~(c) Requested by toll-free telephone call or other electromagnetic~~
26 ~~communication that the Nebraska State Patrol conduct a criminal history~~
27 ~~record check; and~~

28 ~~(d) Received a unique approval number for such inquiry from the~~
29 ~~Nebraska State Patrol indicating the date and number on the consent form.~~

30 **Sec. 50.** Section 69-2420, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 69-2420 Any person who, in connection with the purchase, transfer,
2 or attempted purchase of a handgun pursuant to section ~~sections~~ 69-2410
3 ~~to 69-2423~~, knowingly and intentionally makes any materially false oral
4 or written statement or knowingly and intentionally furnishes any false
5 identification intended or likely to deceive the licensee shall be guilty
6 of a Class IV felony.

7 **Sec. 51.** Section 71-901, Revised Statutes Cumulative Supplement,
8 2024, is amended to read:

9 71-901 Sections 71-901 to 71-964 and sections 54 and 55 of this act
10 shall be known and may be cited as the Nebraska Mental Health Commitment
11 Act.

12 **Sec. 52.** Section 71-903, Revised Statutes Cumulative Supplement,
13 2024, is amended to read:

14 71-903 For purposes of the Nebraska Mental Health Commitment Act,
15 unless the context otherwise requires, the definitions found in sections
16 71-904 to 71-914.02 and sections 54 and 55 of this act shall apply.

17 **Sec. 53.** Section 71-904, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 71-904 Administrator means the administrator or other chief
20 administrative officer of a treatment facility, medical facility, jail,
21 or Department of Correctional Services facility or his or her designee.

22 **Sec. 54.** Dangerous sex offender has the same meaning as in section
23 83-174.01.

24 **Sec. 55.** Videoconferencing means conducting or participating in a
25 hearing or evaluation electronically or telephonically with audiovisual
26 interaction among the participants.

27 **Sec. 56.** Section 71-915, Reissue Revised Statutes of Nebraska, is
28 amended to read:

29 71-915 (1) The presiding judge in each district court judicial
30 district shall create at least one but not more than three mental health
31 boards in such district and shall appoint sufficient members and

1 alternate members to such boards. Members and alternate members of a
2 mental health board shall be appointed for four-year terms. The presiding
3 judge may remove members and alternate members of the board at his or her
4 discretion. Vacancies shall be filled for the unexpired term in the same
5 manner as provided for the original appointment. Members of the mental
6 health board shall have the same immunity as judges of the district
7 court.

8 (2) Each mental health board shall consist of an attorney licensed
9 to practice law in this state and any two of the following but not more
10 than one from each category: A physician, a psychologist, a psychiatric
11 nurse, a licensed clinical social worker or a licensed independent
12 clinical social worker, a licensed independent mental health practitioner
13 who is not a social worker, or a layperson with a demonstrated interest
14 in mental health and substance dependency issues. The attorney shall be
15 chairperson of the board. Members and alternate members of a mental
16 health board shall take and subscribe an oath to support the United
17 States Constitution and the Constitution of Nebraska and to faithfully
18 discharge the duties of the office according to law.

19 (3) The mental health board shall have the power to issue subpoenas,
20 to administer oaths, and to do any act necessary and proper for the board
21 to carry out its duties. No mental health board hearing shall be
22 conducted unless three members or alternate members are present and able
23 to vote. Any action taken at any mental health board hearing shall be by
24 majority vote. Upon the agreement of all parties, any hearing before the
25 mental health board may be conducted by videoconferencing.

26 (4) The mental health board shall prepare and file an annual
27 inventory statement with the county board of its county of all county
28 personal property in its custody or possession. Members of the mental
29 health board shall be compensated and shall be reimbursed for their
30 actual and necessary expenses by the county or counties being served by
31 such board. Compensation shall be at an hourly rate to be determined by

1 the presiding judge of the district court, except that such compensation
2 shall not be less than fifty dollars for each hearing of the board.
3 Members shall also be reimbursed for their actual and necessary expenses,
4 not including charges for meals. Mileage shall be determined pursuant to
5 section 23-1112.

6 **Sec. 57.** Section 71-919, Revised Statutes Cumulative Supplement,
7 2024, is amended to read:

8 71-919 (1)(a) A law enforcement officer may take a person into
9 emergency protective custody, cause him or her to be taken into emergency
10 protective custody, or continue his or her custody if he or she is
11 already in custody if the officer has probable cause to believe:

12 (i) Such person is mentally ill and dangerous or a dangerous sex
13 offender and that the harm described in section 71-908 or subdivision (1)
14 of section 83-174.01 is likely to occur before mental health board
15 proceedings under the Nebraska Mental Health Commitment Act or the Sex
16 Offender Commitment Act may be initiated to obtain custody of the person;
17 or

18 (ii) For a person domiciled within Indian country in Nebraska, that
19 such person is mentally ill and dangerous or a dangerous sex offender
20 under tribal law and that harm comparable to that described in section
21 71-908 or subdivision (1) of section 83-174.01 or the equivalent under
22 tribal law is likely to occur before mental health proceedings under
23 tribal law may be initiated to obtain custody of the person.

24 (b) Such person shall be admitted to an appropriate and available
25 medical facility, jail, or Department of Correctional Services facility
26 as provided in subsection (2) of this section.

27 (c)(i) Except as provided in subdivision (1)(c)(ii) of this section,
28 each county shall make arrangements with appropriate facilities inside or
29 outside the county for such purpose and shall pay the cost of the
30 emergency protective custody of persons from such county in such
31 facilities.

1 (ii) For a subject domiciled within Indian country in Nebraska for
2 whom emergency protective custody is initiated under tribal law, the
3 tribe shall make arrangements with appropriate facilities inside or
4 outside the tribe for such purpose and shall make arrangements for
5 payment of the cost of the emergency protective custody of persons from
6 such tribe in such facilities.

7 (d) A mental health professional who has probable cause to believe
8 that a person is mentally ill and dangerous or a dangerous sex offender
9 may cause such person to be taken into custody and shall have a limited
10 privilege to hold such person until a law enforcement officer or other
11 authorized person arrives to take custody of such person.

12 (2)(a) For purposes of this subsection, convicted sex offender means
13 a person with a prior conviction for an offense listed in section
14 29-4003.

15 (b) A person taken into emergency protective custody under this
16 section who is not a convicted sex offender shall be admitted to an
17 appropriate and available medical facility, except that such person may
18 instead be admitted to a jail or other facility with an available mental
19 health bed under the Regional Mental Health Expansion Pilot Program Act
20 until an appropriate medical facility is available unless such person has
21 a prior conviction for a sex offense listed in section 29-4003.

22 (c) ~~(b)~~ A person taken into emergency protective custody under this
23 section who is not a convicted sex offender ~~has a prior conviction for a~~
24 ~~sex offense listed in section 29-4003~~ shall be admitted to a jail or
25 Department of Correctional Services facility unless a medical or
26 psychiatric emergency exists for which treatment at a medical facility is
27 required. The person in emergency protective custody shall remain at the
28 medical facility until the medical or psychiatric emergency has passed
29 and it is safe to transport such person, at which time the person shall
30 be transferred to an available jail or Department of Correctional
31 Services facility.

1 (3)(a) Except as provided in subdivision (3)(b) of this section,
2 upon admission to a facility or jail of a person taken into emergency
3 protective custody by a law enforcement officer under this section, such
4 officer shall execute a written certificate prescribed and provided by
5 the Department of Health and Human Services. The certificate shall allege
6 the officer's belief that the person in custody is mentally ill and
7 dangerous or a dangerous sex offender and shall contain a summary of the
8 person's behavior supporting such allegations. A copy of such certificate
9 shall be immediately forwarded to the county attorney.

10 (b) In the case of a subject domiciled within Indian country who is
11 taken into emergency protective custody by a law enforcement officer
12 under tribal law, upon admission to a facility or jail, such officer
13 shall execute written documentation in a format provided by the tribe. At
14 a minimum, such documentation shall clearly identify the subject,
15 identify the relevant tribe, allege the officer's belief that the person
16 in custody is mentally ill and dangerous or a dangerous sex offender
17 under tribal law, and contain a summary of the subject's behavior
18 supporting such allegations. A copy of such documentation shall be
19 immediately forwarded to the appropriate tribal prosecutor or tribal
20 official.

21 ~~(4)(a)~~ (4) The administrator of the facility or jail shall have such
22 person evaluated by a mental health professional as soon as reasonably
23 possible but not later than thirty-six hours after admission. The mental
24 health professional shall not be the mental health professional who
25 causes such person to be taken into custody under this section and shall
26 not be a member or alternate member of the mental health board that will
27 preside over any hearing under the Nebraska Mental Health Commitment Act
28 or the Sex Offender Commitment Act with respect to such person. Upon the
29 agreement of all parties, the evaluation may be conducted by
30 videoconferencing if the mental health professional thinks it appropriate
31 under the circumstances.

1 (b) A person shall be released from emergency protective custody
2 after completion of such evaluation unless the mental health professional
3 determines, in his or her clinical opinion, that such person is mentally
4 ill and dangerous or a dangerous sex offender. In the case of a subject
5 domiciled within Indian country who is taken into emergency protective
6 custody under tribal law, the mental health professional shall notify an
7 appropriate tribal prosecutor or official of such release.

8 **Sec. 58.** Section 71-920, Revised Statutes Cumulative Supplement,
9 2024, is amended to read:

10 71-920 (1) Except as provided in subsection (3) of this section, a
11 mental health professional who, upon evaluation of a person admitted for
12 emergency protective custody under section 71-919, determines that such
13 person is mentally ill and dangerous shall execute a written certificate
14 as provided in subsection (2) of this section not later than twenty-four
15 hours after the completion of such evaluation. A copy of such certificate
16 shall be immediately forwarded to the county attorney.

17 (2) The certificate shall be in writing and shall include the
18 following information:

19 (a) The subject's name and address, if known;

20 (b) The name and address of the subject's spouse, legal counsel,
21 guardian or conservator, and next-of-kin, if known;

22 (c) The name and address of anyone providing psychiatric or other
23 care or treatment to the subject, if known;

24 (d) The name and address of any other person who may have knowledge
25 of the subject's mental illness or substance dependence who may be called
26 as a witness at a mental health board hearing with respect to the
27 subject, if known;

28 (e) The name and address of the ~~medical~~ facility or jail in which
29 the subject is being held for emergency protective custody and
30 evaluation;

31 (f) The name and work address of the certifying mental health

1 professional;

2 (g) A statement by the certifying mental health professional that he
3 or she has evaluated the subject since the subject was admitted for
4 emergency protective custody and evaluation; and

5 (h) A statement by the certifying mental health professional that,
6 in his or her clinical opinion, the subject is mentally ill and dangerous
7 and the clinical basis for such opinion.

8 (3) In the case of a subject domiciled within Indian country who is
9 taken into emergency protective custody by a law enforcement officer
10 under tribal law, a mental health professional who, upon evaluation of
11 such person, determines that such person is mentally ill and dangerous
12 shall execute appropriate written documentation in a format provided by
13 the tribe not later than twenty-four hours after the completion of such
14 evaluation. A copy of such certificate shall be immediately forwarded to
15 the person designated by the tribe.

16 **Sec. 59.** Section 71-922, Reissue Revised Statutes of Nebraska, is
17 amended to read:

18 71-922 (1) Mental health board proceedings shall be deemed to have
19 commenced upon the earlier of (a) the filing of a petition under section
20 71-921 or (b) notification by the county attorney to the law enforcement
21 officer who took the subject into emergency protective custody under
22 section 71-920 or the administrator of the ~~treatment center or medical~~
23 facility or jail having charge of the subject of his or her intention to
24 file such petition. The county attorney shall file such petition as soon
25 as reasonably practicable after such notification.

26 (2) A petition filed by the county attorney under section 71-921 may
27 contain a request for the emergency protective custody and evaluation of
28 the subject prior to commencement of a mental health board hearing
29 pursuant to such petition with respect to the subject. Upon receipt of
30 such request and upon a finding of probable cause to believe that the
31 subject is mentally ill and dangerous as alleged in the petition, the

1 court or chairperson of the mental health board may issue a warrant
2 directing the sheriff to take custody of the subject. If the subject is
3 already in emergency protective custody under a certificate filed under
4 section 71-919, a copy of such certificate shall be filed with the
5 petition. The subject in such custody shall be held in the nearest
6 appropriate and available medical facility and shall not be placed in a
7 jail or other correctional facility except as required or authorized by
8 subsection (2) of section 71-919. Each county shall make arrangements
9 with appropriate medical facilities inside or outside the county for such
10 purpose and shall pay the cost of the emergency protective custody of
11 persons from such county in such facilities.

12 (3) The petition and all subsequent pleadings and filings in the
13 case shall be entitled In the Interest of, Alleged to be
14 Mentally Ill and Dangerous. The county attorney may dismiss the petition
15 at any time prior to the commencement of the hearing of the mental health
16 board under section 71-924, and upon such motion by the county attorney,
17 the mental health board shall dismiss the petition.

18 **Sec. 60.** Section 71-924, Reissue Revised Statutes of Nebraska, is
19 amended to read:

20 71-924 (1) A hearing shall be held by the mental health board to
21 determine whether there is clear and convincing evidence that the subject
22 is mentally ill and dangerous as alleged in the petition.

23 (2) At the commencement of the hearing, the board shall inquire
24 whether the subject has received a copy of the petition and list of
25 rights accorded him or her by sections 71-943 to 71-960 and whether he or
26 she has read and understood them. The board shall explain to the subject
27 any part of the petition or list of rights which he or she has not read
28 or understood. The board shall inquire of the subject whether he or she
29 admits or denies the allegations of the petition. If the subject admits
30 the allegations, the board shall proceed to enter a treatment order
31 pursuant to section 71-925. If the subject denies the allegations of the

1 petition, the board shall proceed with a hearing on the merits of the
2 petition.

3 (3) Upon the agreement of all parties, a hearing before the mental
4 health board under this section may be conducted by videoconferencing.

5 **Sec. 61.** Section 71-926, Revised Statutes Cumulative Supplement,
6 2024, is amended to read:

7 71-926 (1) At the conclusion of a mental health board hearing under
8 section 71-924 and prior to the entry of a treatment order by the board
9 under section 71-925, the board may (a) order that the subject be
10 retained in custody until the entry of such order and the subject may be
11 admitted for treatment pursuant to such order or (b) order the subject
12 released from custody under such conditions as the board deems necessary
13 and appropriate to prevent the harm described in section 71-908 and to
14 assure the subject's appearance at a later disposition hearing by the
15 board. A subject shall be retained in custody under this section at the
16 nearest appropriate and available medical facility and shall not be
17 placed in a jail or other correctional facility except as required or
18 authorized by subsection (2) of section 71-919. Each county shall make
19 arrangements with appropriate medical facilities inside or outside the
20 county for such purpose and shall pay the cost of the emergency
21 protective custody of persons from such county in such facilities.

22 (2) A subject who has been ordered to receive inpatient or
23 outpatient treatment by a mental health board may be provided treatment
24 while being retained in emergency protective custody and pending
25 admission of the subject for treatment pursuant to such order.

26 (3)(a) In the case of a subject domiciled within Indian country who
27 is taken into emergency protective custody by a law enforcement officer
28 under tribal law, at the conclusion of a mental health hearing under
29 tribal law and prior to entry of a treatment order by the tribal court,
30 the tribal court may order that the subject be:

31 (i) Retained in custody until entry of such order and the subject

1 may be admitted for treatment pursuant to such order; or

2 (ii) Released from custody under such conditions as the tribal court
3 deems necessary and appropriate to prevent harm comparable to that
4 described in section 71-908 or the equivalent under tribal law and to
5 assure the subject's appearance at a later disposition hearing. A subject
6 shall be retained in custody under this section at the nearest
7 appropriate and available medical facility and shall not be placed in a
8 jail or other correctional facility except as required or authorized by
9 subsection (2) of section 71-919.

10 (b) Each tribe shall make arrangements with appropriate medical
11 facilities inside or outside the tribe for such purpose and shall make
12 arrangements for payment of the cost of the emergency protective custody
13 of persons from such tribe in such facilities.

14 (c) A subject who has been ordered to receive inpatient or
15 outpatient treatment pursuant to tribal law may be provided treatment
16 while being retained in emergency protective custody and pending
17 admission of the subject for treatment pursuant to such order.

18 **Sec. 62.** Section 71-939, Revised Statutes Cumulative Supplement,
19 2024, is amended to read:

20 71-939 (1)(a) When any person receiving treatment at a treatment
21 facility or program for persons with mental illness or substance
22 dependence pursuant to an order of a court or mental health board is
23 absent without authorization from such treatment facility or program, the
24 administrator or program director of such treatment facility or program
25 shall immediately notify the Nebraska State Patrol and the court or clerk
26 of the mental health board of the judicial district from which such
27 person was committed.

28 (b) The clerk shall issue the warrant of the board directed to the
29 sheriff of the county for the arrest and detention of such person. Such
30 warrant may be executed by the sheriff or any other peace officer.

31 (2)(a) When any person receiving treatment at a treatment facility

1 or program for persons with mental illness or substance dependence
2 pursuant to an order of a tribal court as provided in section 71-964 is
3 absent without authorization from such treatment facility or program, the
4 administrator or program director of such treatment facility or program
5 shall immediately notify the Nebraska State Patrol and the appropriate
6 tribal prosecutor or official.

7 (b) The appropriate tribal official may issue a warrant directed to
8 a peace officer or sheriff of any county for the arrest and detention of
9 such person. Such warrant may be executed by the sheriff or any other
10 peace officer.

11 (3) The notification required by subdivision (1)(a) or (2)(a) of
12 this section shall include the person's name and description and a
13 determination by a psychiatrist, clinical director, administrator, or
14 program director as to whether the person is believed to be currently
15 dangerous to others.

16 (4) Pending the issuance of such warrant, any peace officer may
17 seize and detain such person when the peace officer has probable cause to
18 believe that the person is reported to be absent without authorization as
19 described in this section. Such person shall be returned to the treatment
20 facility or program or shall be taken to a facility or jail as described
21 in section 71-919 until he or she can be returned to such treatment
22 facility or program.

23 **Sec. 63.** Section 71-941, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 71-941 (1) A person arrested upon a warrant pursuant to section
26 71-940 shall not be delivered to a demanding state until he or she is
27 notified of the demand for his or her surrender and has had an
28 opportunity to apply for a writ of habeas corpus. If an application is
29 filed, notice of the time and place for hearing on the writ shall be
30 given to the county attorney of the county where the arrest was made. The
31 person arrested shall have the right to counsel and the right to have

1 counsel appointed for him or her if the person is indigent. Pending the
2 determination of the court upon the application for the writ, the person
3 detained shall be maintained in a suitable facility or jail as described
4 in section 71-919 or a hospital for persons with mental illness.

5 (2) At a hearing on a writ of habeas corpus, the State of Nebraska
6 shall show that there is probable cause to believe that (a) such person
7 is absent without authorization from a treatment facility or program for
8 persons with mental illness or substance dependence to which he or she
9 was committed located in the demanding state, (b) the demanding state has
10 reason to believe that such person is currently dangerous to himself,
11 herself, or others, and (c) the demanding state is willing to accept the
12 person back for further treatment.

13 **Sec. 64.** Section 71-951, Reissue Revised Statutes of Nebraska, is
14 amended to read:

15 71-951 All mental health board hearings under the Nebraska Mental
16 Health Commitment Act shall be closed to the public except at the request
17 of the subject and shall be held in a courtroom or at any convenient and
18 suitable place designated by the mental health board. The board shall
19 have the right to conduct the proceeding where the subject is currently
20 residing if the subject is unable to travel. Upon the agreement of all
21 parties, any hearing before the mental health board may be conducted by
22 videoconferencing.

23 **Sec. 65.** Section 71-952, Reissue Revised Statutes of Nebraska, is
24 amended to read:

25 71-952 A subject shall appear personally or by videoconferencing and
26 be afforded the opportunity to testify in his or her own behalf and to
27 present witnesses and tangible evidence in defending against the petition
28 at the hearing.

29 **Sec. 66.** Section 71-954, Reissue Revised Statutes of Nebraska, is
30 amended to read:

31 71-954 (1) Except as provided in subsection (2) of this section, a A

1 subject shall have the right at a hearing held under the Nebraska Mental
2 Health Commitment Act or the Sex Offender Commitment Act to confront and
3 cross-examine adverse witnesses and evidence equivalent to the rights of
4 confrontation granted by Amendments VI and XIV of the United States
5 Constitution and Article I, section 11, of the Constitution of Nebraska.

6 (2) This section does not prohibit a mental health board from
7 conducting a hearing using videoconferencing.

8 **Sec. 67.** Section 71-958, Revised Statutes Cumulative Supplement,
9 2024, is amended to read:

10 71-958 Any qualified mental health professional, upon being
11 authorized by the administrator of the ~~treatment~~ facility or jail having
12 custody of the subject, may provide appropriate medical treatment for the
13 subject while in custody, except that a subject shall not be subjected to
14 such quantities of medication or other treatment within such period of
15 time prior to any hearing held under the Nebraska Mental Health
16 Commitment Act or the Sex Offender Commitment Act or, for a subject who
17 is domiciled in Indian country and committed for treatment as provided in
18 section 71-964, a hearing held under the equivalent tribal law, as will
19 substantially impair his or her ability to assist in his or her defense
20 at such hearing.

21 **Sec. 68.** Section 71-961, Revised Statutes Cumulative Supplement,
22 2024, is amended to read:

23 71-961 (1) All records kept on any subject shall remain confidential
24 except as otherwise provided by law. Such records shall be accessible to
25 (a) the subject, except as otherwise provided in subsection (2) of this
26 section, (b) the subject's legal counsel, (c) the subject's guardian or
27 conservator, if any, (d) the mental health board having jurisdiction over
28 the subject, (e) persons authorized by an order of a judge or court, (f)
29 persons authorized by written permission of the subject, (g) agents or
30 employees of the Department of Health and Human Services upon delivery of
31 a subpoena from the department in connection with a licensing or

1 licensure investigation by the department, (h) individuals authorized to
2 receive notice of the release of a sex offender pursuant to section
3 83-174, (i) the Nebraska State Patrol or the department pursuant to
4 section 69-2409.01, (j) the Department of Correctional Services Division
5 ~~of Parole Supervision~~ if the subject meets the requirements for lifetime
6 community supervision pursuant to section 83-174.03, and (k) any tribal
7 court having jurisdiction over a subject who is domiciled in Indian
8 country and committed for treatment as provided in section 71-964.

9 (2) Upon application by the county attorney or by the administrator
10 of the treatment facility where the subject is in custody and upon a
11 showing of good cause therefor, a judge of the district court of the
12 county where the mental health board proceedings were held or of the
13 county where the treatment facility is located may order that the records
14 not be made available to the subject if, in the judgment of the court,
15 the availability of such records to the subject will adversely affect his
16 or her mental illness or personality disorder and the treatment thereof.

17 (3) When a subject is absent without authorization from a treatment
18 facility or program described in section 71-939 or 71-1223 and is
19 considered to be dangerous to others, the subject's name and description
20 and a statement that the subject is believed to be considered dangerous
21 to others may be disclosed in order to aid in the subject's apprehension
22 and to warn the public of such danger.

23 **Sec. 69.** Section 71-1203, Revised Statutes Cumulative Supplement,
24 2024, is amended to read:

25 71-1203 For purposes of the Sex Offender Commitment Act:

26 (1) The definitions found in sections 71-904.02, 71-905, 71-906,
27 71-907, 71-910, 71-911, 71-914.01, 71-914.02, and 83-174.01 and sections
28 54 and 55 of this act apply;

29 (2) Administrator means the administrator or other chief
30 administrative officer of a treatment facility, medical facility, jail,
31 or Department of Correctional Services facility or his or her designee;

1 (3) Outpatient treatment means treatment ordered by a mental health
2 board directing a subject to comply with specified outpatient treatment
3 requirements, including, but not limited to, (a) taking prescribed
4 medication, (b) reporting to a mental health professional or treatment
5 facility for treatment or for monitoring of the subject's condition, or
6 (c) participating in individual or group therapy or educational,
7 rehabilitation, residential, or vocational programs;

8 (4)(a) Subject means any person concerning whom (i) a certificate
9 has been filed under section 71-1204, (ii) a certificate has been filed
10 under section 71-919 and such person is held pursuant to subdivision (2)
11 (b) of section 71-919, or (iii) a petition has been filed under the Sex
12 Offender Commitment Act.

13 (b) Subject also includes a person who is a member of a tribe or
14 eligible for membership in a tribe, who is domiciled within Indian
15 country in Nebraska, and concerning whom sex offender involuntary
16 commitment or emergency protective custody proceedings have been
17 initiated under tribal law. Subject does not include any person under
18 eighteen years of age unless such person is an emancipated minor; and

19 (5) Treatment facility means a facility which provides services for
20 persons who are dangerous sex offenders.

21 **Sec. 70.** Section 71-1204, Revised Statutes Cumulative Supplement,
22 2024, is amended to read:

23 71-1204 (1) Except as provided in subsection (3) of this section, a
24 mental health professional who, upon evaluation of a person admitted for
25 emergency protective custody under section 71-919, determines that such
26 person is a dangerous sex offender shall execute a written certificate as
27 provided in subsection (2) of this section not later than twenty-four
28 hours after the completion of such evaluation. A copy of such certificate
29 shall be immediately forwarded to the county attorney.

30 (2) The certificate shall be in writing and shall include the
31 following information:

1 (a) The subject's name and address, if known;

2 (b) The name and address of the subject's spouse, legal counsel,
3 guardian or conservator, and next of kin, if known;

4 (c) The name and address of anyone providing psychiatric or other
5 care or treatment to the subject, if known;

6 (d) The name and address of any other person who may have knowledge
7 of the subject's mental illness or personality disorder who may be called
8 as a witness at a mental health board hearing with respect to the
9 subject, if known;

10 (e) The name and address of the ~~medical~~ facility or jail in which
11 the subject is being held for emergency protective custody and
12 evaluation;

13 (f) The name and work address of the certifying mental health
14 professional;

15 (g) A statement by the certifying mental health professional that he
16 or she has evaluated the subject since the subject was admitted for
17 emergency protective custody and evaluation; and

18 (h) A statement by the certifying mental health professional that,
19 in his or her clinical opinion, the subject is a dangerous sex offender
20 and the clinical basis for such opinion.

21 (3) In the case of a subject domiciled within Indian country who is
22 taken into emergency protective custody by a law enforcement officer
23 under tribal law, a mental health professional who, upon evaluation of
24 such person, determines that such person is a dangerous sex offender
25 shall execute appropriate written documentation in a format provided by
26 the tribe not later than twenty-four hours after the completion of such
27 evaluation. A copy of such certificate shall be immediately forwarded to
28 the person designated by the tribe.

29 **Sec. 71.** Section 71-1206, Revised Statutes Cumulative Supplement,
30 2024, is amended to read:

31 71-1206 (1) Mental health board proceedings shall be deemed to have

1 commenced upon the earlier of (a) the filing of a petition under section
2 71-1205 or (b) notification by the county attorney to the law enforcement
3 officer who took the subject into emergency protective custody under
4 section 71-919 or the administrator of the ~~treatment~~ facility or jail
5 having charge of the subject of the intention of the county attorney to
6 file such petition. The county attorney shall file such petition as soon
7 as reasonably practicable after such notification.

8 (2) A petition filed by the county attorney under section 71-1205
9 may contain a request for the emergency protective custody and evaluation
10 of the subject prior to commencement of a mental health board hearing
11 pursuant to such petition with respect to the subject. Upon receipt of
12 such request and upon a finding of probable cause to believe that the
13 subject is a dangerous sex offender as alleged in the petition, the court
14 or chairperson of the mental health board may issue a warrant directing
15 the sheriff to take custody of the subject. If the subject is already in
16 emergency protective custody under a certificate filed under section
17 71-919, a copy of such certificate shall be filed with the petition. The
18 subject in such custody, including pursuant to tribal law as provided in
19 section 71-1226.01, shall be held in an appropriate and available medical
20 facility, jail, or Department of Correctional Services facility. A
21 dangerous sex offender shall not be admitted to a medical facility for
22 emergency protective custody unless a medical or psychiatric emergency
23 exists requiring treatment not available at a jail or correctional
24 facility.

25 (3)(a) Except as provided in subdivision (3)(b) of this section,
26 each county shall make arrangements with appropriate facilities inside or
27 outside the county for such purpose and shall pay the cost of the
28 emergency protective custody of persons from such county in such
29 facilities.

30 (b) For a subject domiciled within Indian country in Nebraska for
31 whom emergency protective custody is initiated under tribal law, the

1 tribe shall make arrangements with appropriate facilities inside or
2 outside the tribe for such purpose and shall make arrangements for the
3 payment of the cost of the emergency protective custody of persons from
4 such tribe in such facilities.

5 (4) The petition and all subsequent pleadings and filings in the
6 case shall be entitled In the Interest of , Alleged to be a
7 Dangerous Sex Offender. The county attorney may dismiss the petition at
8 any time prior to the commencement of the hearing of the mental health
9 board under section 71-1208, and upon such motion by the county attorney,
10 the mental health board shall dismiss the petition.

11 **Sec. 72.** Section 71-1208, Reissue Revised Statutes of Nebraska, is
12 amended to read:

13 71-1208 (1) A hearing shall be held by the mental health board to
14 determine whether there is clear and convincing evidence that the subject
15 is a dangerous sex offender as alleged in the petition.

16 (2) At the commencement of the hearing, the board shall inquire
17 whether the subject has received a copy of the petition and list of
18 rights accorded him or her by sections 71-943 to 71-960 and whether he or
19 she has read and understood them. The board shall explain to the subject
20 any part of the petition or list of rights which he or she has not read
21 or understood. The board shall inquire of the subject whether he or she
22 admits or denies the allegations of the petition. If the subject admits
23 the allegations, the board shall proceed to enter a treatment order
24 pursuant to section 71-1209. If the subject denies the allegations of the
25 petition, the board shall proceed with a hearing on the merits of the
26 petition.

27 (3) Upon the agreement of all parties, a hearing before the mental
28 health board under this section may be conducted by videoconferencing.

29 **Sec. 73.** Section 71-1223, Revised Statutes Cumulative Supplement,
30 2024, is amended to read:

31 71-1223 (1)(a) When any person receiving treatment at a treatment

1 facility or program for dangerous sex offenders pursuant to an order of a
2 court or mental health board is absent without authorization from such
3 treatment facility or program, the administrator or program director of
4 such treatment facility or program shall immediately notify the Nebraska
5 State Patrol and the court or clerk of the mental health board of the
6 judicial district from which such person was committed.

7 (b) The clerk shall issue the warrant of the board directed to the
8 sheriff of the county for the arrest and detention of such person. Such
9 warrant may be executed by the sheriff or any other peace officer.

10 (2)(a) When any person receiving treatment at a treatment facility
11 or program for persons with mental illness pursuant to an order of a
12 tribal court as provided in section 71-1226.01 is absent without
13 authorization from such treatment facility or program, the administrator
14 or program director of such treatment facility or program shall
15 immediately notify the Nebraska State Patrol and the appropriate tribal
16 prosecutor or official.

17 (b) The appropriate tribal official may issue a warrant directed to
18 a peace officer or sheriff of any county for the arrest and detention of
19 such person. Such warrant may be executed by the sheriff or any other
20 peace officer.

21 (3) The notification required by subdivision (1)(a) or (2)(a) of
22 this section shall include the person's name and description and a
23 determination by a psychiatrist, clinical director, administrator, or
24 program director as to whether the person is believed to be currently
25 dangerous to others.

26 (4) Pending the issuance of such warrant, any peace officer may
27 seize and detain such person when the peace officer has probable cause to
28 believe that the person is reported to be absent without authorization as
29 described in this section. Such person shall be returned to the treatment
30 facility or program or shall be taken to a facility or jail as described
31 in section 71-919 until he or she can be returned to such treatment

1 facility or program.

2 **Sec. 74.** Section 71-3426, Revised Statutes Cumulative Supplement,
3 2024, is amended to read:

4 71-3426 (1) A lead organization may establish a local team for the
5 lead organization's jurisdiction or for a group of cities, counties, or
6 districts, pursuant to an agreement between multiple lead organizations.
7 If multiple lead organizations decide to form a local team, only one
8 shall fulfill the role of lead organization. The lead organization shall
9 select the members of the local team.

10 (2) A local team shall consist of the core members that may include
11 one or more members from the following backgrounds:

12 (a) Officials from the lead organization or from another local
13 public health department or such officials' designees;

14 (b) Behavioral health providers or officials;

15 (c) Law enforcement personnel;

16 (d) Representatives of jails or detention centers;

17 (e) The coroner or the coroner's designee;

18 (f) Health care providers who specialize in the prevention,
19 diagnosis, and treatment of substance use disorders;

20 (g) Mental health providers who specialize in substance use
21 disorders;

22 (h) Representatives of emergency medical services providers in the
23 county;

24 (i) The Director of Children and Family Services of the Division of
25 Children and Family Services of the Department of Health and Human
26 Services or the director's designee; and

27 (j) Representatives from the Board of Parole, the Office of
28 Probation Administration, the Department of Correctional Services
29 ~~Division of Parole Supervision~~, or the Community Corrections Division of
30 the Nebraska Commission on Law Enforcement and Criminal Justice.

31 (3) A local team may also include, either as permanent or temporary

1 members:

2 (a) A local school superintendent or the superintendent's designee;

3 (b) A representative of a local hospital;

4 (c) A health care provider who specializes in emergency medicine;

5 (d) A health care provider who specializes in pain management;

6 (e) A pharmacist with a background in prescription drug misuse and
7 diversion;

8 (f) A substance use disorder treatment provider from a licensed
9 substance use disorder treatment program;

10 (g) A poison control center representative;

11 (h) A mental health provider who is a generalist;

12 (i) A prescription drug monitoring program administrator or such
13 administrator's designee;

14 (j) A representative from a harm reduction provider;

15 (k) A recovery coach, peer support worker, or other representative
16 of the recovery community;

17 (l) A representative from the local drug court; and

18 (m) Any other individual necessary for the work of the local team.

19 (4) The lead organization shall select a chairperson for the local
20 team. The chairperson shall be an official of the lead organization or
21 such official's designee. The chairperson shall:

22 (a) Solicit and recruit members and appoint replacement members to
23 fill vacancies that may arise on the team. In carrying out this
24 responsibility, the chairperson shall, at a minimum, attempt to appoint
25 at least one member from each of the backgrounds or positions described
26 in subsection (2) of this section;

27 (b) Facilitate local team meetings and implement the protocols and
28 procedures of the local team;

29 (c) Request and collect the records and information needed for the
30 local team's case review. The chairperson shall remove all personal
31 identifying information from any records or information prior to

1 providing it to the local team;

2 (d) Gather, store, and distribute the necessary records and
3 information for reviews conducted by the team. The chairperson shall
4 carry out such duties in compliance with all local, state, and federal
5 confidentiality laws and regulations;

6 (e) Ensure that team members receive timely notification of upcoming
7 meetings;

8 (f) Ensure the team fulfills the requirements of section 71-3427 to
9 publish an annual report, including recommendations to prevent future
10 drug overdose deaths;

11 (g) Ensure that all members of the local team and all guest
12 observers and participants sign confidentiality forms as required under
13 section 71-3433;

14 (h) Oversee compliance with the Overdose Fatality Review Teams Act
15 and the protocols developed by the team;

16 (i) Serve as a liaison for the local team; and

17 (j) Perform such other duties as the team deems appropriate.

18 (5) Members of the local team shall not receive compensation for
19 their services as team members.

20 **Sec. 75.** Section 71-3430, Revised Statutes Cumulative Supplement,
21 2024, is amended to read:

22 71-3430 (1) Except as provided in subsection (4) of this section, on
23 written request of the lead organization, and as necessary to carry out
24 the purpose and duties of the local team, the lead organization shall be
25 provided with the following information:

26 (a) Nonprivileged information and records regarding the physical
27 health, mental health, and treatment for any substance use disorder
28 maintained by a health care provider, substance use disorder treatment
29 provider, hospital, or health system for an individual whose death is
30 being reviewed by the local team; and

31 (b) Information and records maintained by a state or local

1 government agency or entity, including, but not limited to, death
2 investigative information, coroner investigative information, law
3 enforcement investigative information, emergency medical services
4 reports, fire department records, prosecutorial records, parole and
5 probation information and records, court records, school records, and
6 information and records of a social services agency, including the
7 department, if the agency or entity provided services to an individual
8 whose death is being reviewed by the local team.

9 (2) Except as provided in subsection (4) of this section, the
10 following persons shall comply with a records request by the lead
11 organization made pursuant to subsection (1) of this section:

12 (a) A coroner;

13 (b) A fire department;

14 (c) A health system;

15 (d) A hospital;

16 (e) A law enforcement agency;

17 (f) A local or state governmental agency, including, but not limited
18 to, the department, local public health authorities, the Attorney
19 General, county attorneys, public defenders, the Commission on Public
20 Advocacy, the Department of Correctional Services, and the Office of
21 Probation Administration, ~~and the Division of Parole Supervision;~~

22 (g) A mental health provider;

23 (h) A health care provider;

24 (i) A substance use disorder treatment provider;

25 (j) A school, including a public or private elementary, secondary,
26 or postsecondary institution;

27 (k) An emergency medical services provider;

28 (l) A social services provider; and

29 (m) Any other person who is in possession of records pertinent to
30 the local team's investigation of an overdose fatality.

31 (3) A person subject to a records request by a lead organization

1 under subsection (1) of this section may charge the lead organization a
2 reasonable fee for the service of duplicating any records requested by
3 the lead organization, not to exceed the actual cost of duplication.

4 (4)(a) Compliance with any records request under this section is
5 subject to the federal Health Insurance Portability and Accountability
6 Act of 1996, Public Law 104-191, and regulations promulgated thereunder;
7 42 U.S.C. 290dd-2; 42 C.F.R. part 2; and the Child Protection and Family
8 Safety Act.

9 (b) The department is not required to comply with a records request
10 under subsection (2) of this section to the extent the information
11 requested:

12 (i) Was obtained by the prescription drug monitoring program created
13 under section 71-2454;

14 (ii) Is covered by section 68-313; or

15 (iii) Is covered by 42 C.F.R. 431.300 et seq.

16 (c) The disclosure or redisclosure of a medical record developed in
17 connection with the provision of substance abuse treatment services,
18 without the authorization of a person in interest, is subject to any
19 limitations that exist under the federal Health Insurance Portability and
20 Accountability Act of 1996, Public Law 104-191, and regulations
21 promulgated thereunder; 42 U.S.C. 290dd-2; and 42 C.F.R. part 2.

22 (5) Information requested by the lead organization shall be provided
23 within thirty calendar days after receipt of the written request, unless
24 an extension is granted by the chairperson. Written request includes a
25 request submitted via email or facsimile transmission.

26 (6)(a) A county attorney or the Attorney General may, upon request
27 by a lead organization, issue subpoenas to compel production of any of
28 the records and information specified in this section.

29 (b) Any willful failure to comply with such a subpoena may be
30 certified by the county attorney or Attorney General to the district
31 court for enforcement or punishment for contempt of court.

1 **Sec. 76.** Section 81-1401, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 81-1401 For purposes of sections 81-1401 to 81-1414.19, unless the
4 context otherwise requires:

5 (1) Class I railroad means a rail carrier classified as Class I
6 pursuant to 49 C.F.R. part 1201 1-1;

7 (2) Commission means the Nebraska Commission on Law Enforcement and
8 Criminal Justice;

9 (3) Council means the Nebraska Police Standards Advisory Council;

10 (4) Director means the director of the Nebraska Law Enforcement
11 Training Center;

12 (5) Felony means a crime punishable by imprisonment for a term of
13 more than one year or a crime committed outside of Nebraska which would
14 be punishable by imprisonment for a term of more than one year if
15 committed in Nebraska;

16 (6) Handgun means any firearm with a barrel less than sixteen inches
17 in length or any firearm designed to be held and fired by the use of a
18 single hand;

19 (7) Law enforcement agency means the police department or the town
20 marshal in incorporated municipalities, the office of sheriff in
21 unincorporated areas, the Nebraska State Patrol, and Class I railroad
22 police departments;

23 (8)(a) Law enforcement officer means any person who has successfully
24 completed an entry-level law enforcement certification from a training
25 academy and who is responsible for the prevention or detection of crime
26 or the enforcement of the penal, traffic, or highway laws of the state or
27 any political subdivision of the state for more than one hundred hours
28 per year and is authorized by law to make arrests and includes, but is
29 not limited to:

30 (i) A full-time or part-time member of the Nebraska State Patrol;

31 (ii) A county sheriff;

1 (iii) A full-time or part-time employee of a county sheriff's
2 office;

3 (iv) A full-time or part-time employee of a municipal or village
4 police agency;

5 (v) A full-time or part-time Game and Parks Commission conservation
6 officer;

7 (vi) A full-time or part-time deputy state sheriff;

8 (vii) A full-time employee of an organized and paid fire department
9 of any city of the metropolitan class who is an authorized arson
10 investigator and whose duties consist of determining the cause, origin,
11 and circumstances of fires or explosions while on duty in the course of
12 an investigation;

13 (viii) A member of a law enforcement reserve force appointed in
14 accordance with section 81-1438; or

15 (ix) A full-time Class I railroad police officer;

16 (b) Law enforcement officer includes a noncertified conditional
17 officer;

18 (c) Law enforcement officer does not include employees of the
19 Department of Correctional Services, probation officers under the
20 Nebraska Probation System, parole officers appointed by the Director of
21 Correctional Supervision and Services of the ~~Division of Parole~~
22 ~~Supervision~~, or employees of the Department of Revenue under section
23 77-366; and

24 (d) Except for a noncertified conditional officer, a law enforcement
25 officer shall possess a valid law enforcement officer certificate or
26 diploma, as established by the council, in order to be vested with the
27 authority of this section;

28 (9) Misdemeanor crime of domestic violence has the same meaning as
29 in section 28-1206;

30 (10) Noncertified conditional officer means a person appointed
31 pursuant to subsection (6) of section 81-1414;

1 (11) Serious misconduct means improper or illegal actions taken by a
2 law enforcement officer that have a rational connection with the person's
3 fitness or capacity to serve as a law enforcement officer and includes,
4 but is not limited to:

5 (a) Conviction of a felony or misdemeanor crime of domestic
6 violence;

7 (b) Fabrication of evidence;

8 (c) Repeated substantiated allegations of the use of excessive
9 force;

10 (d) Acceptance of a bribe;

11 (e) Commission of fraud or perjury; or

12 (f) Sexual assault;

13 (12) Training academy means:

14 (a) The training center; or

15 (b) Another council-approved law enforcement training facility
16 which:

17 (i) Offers certification training that meets or exceeds the
18 certification training curriculum of the training center; and

19 (ii) Is operated and maintained by a law enforcement agency or by
20 multiple law enforcement agencies pursuant to the Interlocal Cooperation
21 Act;

22 (13) Training center means the Nebraska Law Enforcement Training
23 Center; and

24 (14) Training school means a public or private institution of higher
25 education, including the University of Nebraska, the Nebraska state
26 colleges, and the community colleges of this state, that offers training
27 in a council-approved pre-certification course.

28 **Sec. 77.** Section 83-170, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 83-170 As used in the Nebraska Treatment and Corrections Act, unless
31 the context otherwise requires:

1 (1) Board means the Board of Parole;

2 (2) Committed offender means any person who, under any provision of
3 law, is sentenced or committed to a facility operated by the department
4 or is sentenced or committed to the department other than a person
5 adjudged to be as described in subdivision (1), (2), (3)(b), or (4) of
6 section 43-247 by a juvenile court;

7 (3) Department means the Department of Correctional Services;

8 (4) Director means the Director of Correctional Services;

9 ~~(5) Director of Supervision and Services means the Director of~~
10 ~~Supervision and Services appointed pursuant to section 83-1,101;~~

11 ~~(5) (6)~~ Facility means any prison, reformatory, training school,
12 reception center, community guidance center, group home, or other
13 institution operated by the department;

14 ~~(6) (7)~~ Good time means any reduction of sentence granted pursuant
15 to sections 83-1,107 and 83-1,108;

16 ~~(7) (8)~~ Maximum term means the maximum sentence provided by law or
17 the maximum sentence imposed by a court, whichever is shorter;

18 ~~(8) (9)~~ Minimum term means the minimum sentence provided by law or
19 the minimum sentence imposed by a court, whichever is longer;

20 ~~(9) (10)~~ Pardon authority means the power to remit fines and
21 forfeitures and to grant respites, reprieves, pardons, or commutations;

22 ~~(10) (11)~~ Parole term means the time from release on parole to the
23 completion of the maximum term, reduced by good time;

24 ~~(11) (12)~~ Person committed to the department means any person
25 sentenced or committed to a facility within the department;

26 ~~(12) (13)~~ Restrictive housing means conditions of confinement that
27 provide limited contact with other offenders, strictly controlled
28 movement while out of cell, and out-of-cell time of less than twenty-four
29 hours per week; and

30 ~~(13) (14)~~ Solitary confinement means the status of confinement of an
31 inmate in an individual cell having solid, soundproof doors and which

1 deprives the inmate of all visual and auditory contact with other
2 persons.

3 **Sec. 78.** Section 83-171, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 83-171 There is hereby created a Department of Correctional Services
6 which shall:

7 (1) Maintain and administer facilities required for the custody,
8 control, correctional treatment, and rehabilitation of persons committed
9 to the department and for the safekeeping of such other persons as may be
10 remanded to the department in accordance with law;

11 (2) Develop policies and programs for the correctional treatment and
12 rehabilitation of persons committed to the department;

13 (3) Supervise parolees who have been committed to the department;
14 and

15 (4) Administer parole services in the facilities and in the
16 community; and -

17 (5) Maintain all records and files associated with the Board of
18 Parole, including relating to individuals subject to lifetime community
19 supervision under section 83-174.03. This section shall not be construed
20 to prohibit the department from maintaining daily records and files
21 associated with the Board of Pardons.

22 **Sec. 79.** Section 83-171.01, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 83-171.01 The department ~~and the Division of Parole Supervision~~
25 shall establish performance metrics for corrections and parole staff.
26 Such metrics shall measure staff efficacy in providing rehabilitative and
27 reentry services to committed offenders and parolees. Such metrics shall:

28 (1) Reflect a balanced approach that considers both compliance and
29 enforcement measures as well as outcomes related to rehabilitation,
30 reintegration, and public safety;

31 (2) Include indicators of progress for committed offenders and

1 parolees, such as successful completion of treatment programs,
2 educational attainment, employment status, and compliance with conditions
3 of supervision;

4 (3) Emphasize the importance of providing supportive services,
5 fostering positive relationships with committed offenders and parolees,
6 and promoting successful community reentry; and

7 (4) Be aligned with best practices, stakeholder input, and the
8 evolving goals and priorities of the criminal justice system.

9 **Sec. 80.** Section 83-173, Reissue Revised Statutes of Nebraska, is
10 amended to read:

11 83-173 The Director of Correctional Services shall:

12 (1) Supervise and be responsible for the administration of the
13 Department of Correctional Services;

14 (2) Establish, consolidate, or abolish any administrative
15 subdivision within the department and appoint and remove for cause the
16 heads thereof and delegate appropriate powers and duties to them;

17 (3) Establish and administer policies and programs for the operation
18 of the facilities in the department and for the custody, control, safety,
19 correction, and rehabilitation of persons committed to the department;

20 (4) Appoint and remove the chief executive officer of each facility
21 and delegate appropriate powers and duties to him or her;

22 (5) Appoint and remove employees of the department and delegate
23 appropriate powers and duties to them;

24 (6) Adopt and promulgate rules and regulations for the management,
25 correctional treatment, and rehabilitation of persons committed to the
26 department, the administration of facilities, and the conduct of officers
27 and employees under his or her jurisdiction;

28 (7) Designate the place of confinement of persons committed to the
29 department subject to section 83-176;

30 (8) Establish and administer policies that ensure that complete and
31 up-to-date electronic records are maintained for each person committed to

1 the department and which also ensure privacy protections. Electronic
2 records shall include programming recommendations, program completions,
3 time spent in housing other than general population, and medical records,
4 including mental and behavioral health records;

5 (9) Collect, develop, and maintain statistical information
6 concerning persons committed to the department, sentencing practices, and
7 correctional treatment as may be useful in penological research or in the
8 development of treatment programs;

9 (10) Provide training programs designed to equip employees for duty
10 in the facilities and related services of the department and to raise and
11 maintain the educational standards, level of performance, and safety of
12 such employees;

13 (11) Notify law enforcement agencies of upcoming furloughs as
14 required by section 83-173.01;

15 (12) Issue or authorize the issuance of a warrant for the arrest of
16 any person committed to the department who has escaped from the custody
17 of the department; and

18 (13) Supervise and be responsible for administration of parole
19 services in the community, including administration of the Community Work
20 Release and Reentry Centers Act;

21 (14) Establish and maintain policies, standards, and procedures for
22 the field parole service and the community supervision of sex offenders
23 pursuant to section 83-174.03;

24 (15) Divide the state into parole districts and appoint district
25 parole officers and such other employees as may be required to carry out
26 adequate parole supervision of all parolees, prescribe their powers and
27 duties, and obtain division offices for staff in each district as may be
28 necessary;

29 (16) Cooperate with the Board of Parole, the courts, the Community
30 Corrections Division of the Nebraska Commission on Law Enforcement and
31 Criminal Justice, and all other agencies, public and private, which are

1 concerned with the treatment or welfare of persons on parole;

2 (17) Provide the Board of Parole and district judges with any record
3 of a parolee that the board or such judges may require;

4 (18) Make recommendations to the Board of Parole or district judge
5 in cases of violation of the conditions of parole, issue warrants for the
6 arrest of parole violators when so instructed by the board or district
7 judge, and upon instruction of the board, issue certificates of parole
8 and of parole revocation to the facilities and certificates of discharge
9 from parole to parolees;

10 (19) Organize and conduct training programs for the district parole
11 officers and other employees;

12 (20) Use the funds provided under section 83-1,107.02 to augment
13 operational or personnel costs associated with the development,
14 implementation, and evaluation of enhanced parole-based programs and
15 purchase services to provide such programs aimed at enhancing adult
16 parolee supervision in the community and treatment needs of parolees.
17 Such enhanced parole-based programs include, but are not limited to,
18 specialized units of supervision, related equipment purchases and
19 training, and programs that address a parolee's vocational, educational,
20 mental health, behavioral, or substance abuse treatment needs, including
21 evidence-based peer and family support programs;

22 (21) Ensure that any risk or needs assessment instrument utilized by
23 the department be periodically validated;

24 (22) Each January 1, report to the Governor and electronically to
25 the Clerk of the Legislature the number of parole revocations and the
26 number of technical violations of parole;

27 (23) Take all actions necessary to assist the board in carrying out
28 its duties under section 83-962 during a correctional system overcrowding
29 emergency;

30 (24) Administer the Interstate Compact for Adult Offender
31 Supervision; and

1 (25) ~~(13)~~ Exercise all powers and perform all duties necessary and
2 proper in carrying out his or her responsibilities.

3 **Sec. 81.** Section 83-174.03, Reissue Revised Statutes of Nebraska, is
4 amended to read:

5 83-174.03 (1) Any individual who, on or after July 14, 2006, (a) is
6 convicted of or completes a term of incarceration for a registrable
7 offense under section 29-4003 and has a previous conviction for a
8 registrable offense under such section, (b) is convicted of sexual
9 assault of a child in the first degree pursuant to section 28-319.01, or
10 (c) is convicted of or completes a term of incarceration for an
11 aggravated offense as defined in section 29-4001.01, shall, upon
12 completion of his or her term of incarceration or release from civil
13 commitment, be supervised in the community by the department ~~Division of~~
14 ~~Parole Supervision~~ for the remainder of his or her life.

15 (2) Notice shall be provided to the department ~~division~~ by an agency
16 or political subdivision which has custody of an individual required to
17 be supervised in the community pursuant to subsection (1) of this section
18 at least sixty days prior to the release of such individual from custody.

19 (3) Individuals required to be supervised in the community pursuant
20 to subsection (1) of this section shall undergo a risk assessment and
21 evaluation by the department ~~division~~ to determine the conditions of
22 community supervision to be imposed to best protect the public from the
23 risk that the individual will reoffend.

24 (4) Conditions of community supervision imposed on an individual by
25 the department ~~division~~ may include the following:

26 (a) Drug and alcohol testing if the conviction resulting in the
27 imposition of community supervision involved the use of drugs or alcohol;

28 (b) Restrictions on employment and leisure activities necessary to
29 minimize interaction with potential victims;

30 (c) Requirements to report regularly to the individual's community
31 supervision officer;

1 (d) Requirements to reside at a specified location and notify the
2 individual's community supervision officer of any change in address or
3 employment;

4 (e) A requirement to allow the department ~~division~~ access to medical
5 records from the individual's current and former providers of treatment;

6 (f) A requirement that the individual submit himself or herself to
7 available medical, psychological, psychiatric, or other treatment,
8 including, but not limited to, polygraph examinations; or

9 (g) Any other conditions designed to minimize the risk of
10 recidivism, including, but not limited to, the use of electronic
11 monitoring, which are not unduly restrictive.

12 **Sec. 82.** Section 83-174.04, Reissue Revised Statutes of Nebraska, is
13 amended to read:

14 83-174.04 An individual who violates one or more of the conditions
15 of community supervision established for him or her pursuant to section
16 83-174.03 shall undergo a review by the department ~~Division of Parole~~
17 ~~Supervision~~ to evaluate the risk posed to the public by the violation in
18 question. The department ~~division~~ may take any of the following actions
19 in response to a violation of conditions of community supervision:

20 (1) Revise or impose additional conditions of community supervision
21 in order to minimize the risk to the public from the continued presence
22 of the individual in the community;

23 (2) Forward to the Attorney General or the county attorney in the
24 county where the individual resides a request to initiate a criminal
25 prosecution for failure to comply with the terms of community
26 supervision; or

27 (3) Forward to the county attorney or Attorney General a
28 recommendation that civil commitment proceedings be instituted with
29 respect to the individual.

30 **Sec. 83.** Section 83-174.05, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 83-174.05 Failure to comply with the conditions of community
2 supervision imposed by the department ~~Division of Parole Supervision~~ is a
3 Class IV felony for the first offense and a Class III felony for any
4 subsequent offense.

5 **Sec. 84.** Section 83-192, Reissue Revised Statutes of Nebraska, is
6 amended to read:

7 83-192 (1) The Board of Parole shall:

8 (a) Determine the time of release on parole of committed offenders
9 eligible for such release;

10 (b) Fix the conditions of parole, revoke parole, issue or authorize
11 the issuance of warrants for the arrest of parole violators, and impose
12 other sanctions short of revocation for violation of conditions of
13 parole;

14 (c) Determine the time of mandatory discharge from parole;

15 (d) Visit and inspect any facility, state or local, for the
16 detention of persons charged with or convicted of an offense and for the
17 safekeeping of such other persons as may be remanded to such facility in
18 accordance with law;

19 (e) ~~Implement Within two years after July 1, 2006, implement~~ the
20 utilization of a validated risk and needs assessment in coordination with
21 the Department of Correctional Services ~~and the Division of Parole~~
22 ~~Supervision~~. The assessment shall be prepared and completed by the
23 department ~~or the division~~ for use by the board in determining release on
24 parole;

25 (f) Review the record of every parole-eligible committed offender
26 annually when he or she is within three years of his or her earliest
27 parole eligibility date.

28 The review schedule shall be based on court-imposed sentences or
29 statutory minimum sentences, whichever are greater. The board is not
30 required to review the record of a committed offender when the committed
31 offender's parole eligibility date is within one month of his or her

1 mandatory discharge date. Nothing in such schedule shall prohibit the
2 board from reviewing a committed offender's case at any time;

3 (g) Appoint and remove all employees of the board as prescribed by
4 the State Personnel System and delegate appropriate powers and duties to
5 them;

6 (h) Carry out its duties under section 83-962 during a correctional
7 system overcrowding emergency;

8 (i) Adopt and promulgate rules and regulations; and

9 (j) Exercise all powers and perform all duties necessary and proper
10 in carrying out its responsibilities under the Nebraska Treatment and
11 Corrections Act.

12 (2) The chairperson of the board shall:

13 (a) Supervise the administration and operation of the board;

14 (b) Serve in an advisory capacity to the director in administering
15 parole services within any facility;

16 (c) Interpret the parole program to the public with a view toward
17 developing a broad base of public support;

18 (d) Conduct research for the purpose of evaluating and improving the
19 effectiveness of the parole system;

20 (e) Recommend parole legislation to the Governor;

21 (f) Adopt and promulgate rules and regulations for the
22 administration and operation of the board;

23 (g) Take all actions necessary to assist the board in carrying out
24 its duties under section 83-962 during a correctional system overcrowding
25 emergency; and

26 (h) Exercise all other powers and perform all other duties necessary
27 and proper in carrying out his or her responsibilities as chairperson.

28 (3) This section does not prohibit a committed offender from
29 requesting that the board review his or her record. The board is not
30 required to review a committed offender's record more than once a year,
31 except as otherwise required by statute, including section 83-962.

1 **Sec. 85.** Section 83-1,100, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 83-1,100 ~~(1) There is hereby created the Division of Parole~~
4 ~~Supervision within the department. The employees of the division shall~~
5 ~~consist of the Director of Supervision and Services, the field parole~~
6 ~~service officers, and all other division staff. The division shall be~~
7 ~~responsible for the following:~~

8 ~~(a) The administration of parole services in the community,~~
9 ~~including administration of the Community Work Release and Reentry~~
10 ~~Centers Act;~~

11 ~~(b) The maintenance of all records and files associated with the~~
12 ~~Board of Parole;~~

13 ~~(c) The daily supervision and training of staff members of the~~
14 ~~division, including training regarding evidence-based practices in~~
15 ~~supervision pursuant to section 83-1,100.02; and~~

16 ~~(d) The assessment, evaluation, and supervision of individuals who~~
17 ~~are subject to parole supervision, including lifetime community~~
18 ~~supervision pursuant to section 83-174.03.~~

19 (2) Parole officers shall be compensated with salaries substantially
20 equal to other state employees who have similar responsibilities,
21 including employees of the Office of Probation Administration. This
22 section ~~subsection~~ shall apply only to field parole service officers and
23 support staff and shall not apply to the director ~~Director of Supervision~~
24 ~~and Services~~ or any other management-level position.

25 ~~(3) This section does not prohibit the division from maintaining~~
26 ~~daily records and files associated with the Board of Pardons.~~

27 **Sec. 86.** Section 83-1,100.02, Reissue Revised Statutes of Nebraska,
28 is amended to read:

29 83-1,100.02 (1) For purposes of this section:

30 (a) Levels of supervision means the determination of the following
31 for each person on parole:

1 (i) Supervision contact requirements, including the frequency,
2 location, methods, and nature of contact with the parole officer;

3 (ii) Substance abuse testing requirements and frequency;

4 (iii) Contact restrictions;

5 (iv) Curfew restrictions;

6 (v) Access to available programs and treatment, with priority given
7 to moderate-risk and high-risk parolees; and

8 (vi) Severity of graduated responses to violations of supervision
9 conditions;

10 (b) Responsivity factors means characteristics of a parolee that
11 affect the parolee's ability to respond favorably or unfavorably to any
12 treatment goals; and

13 (c) Risk and needs assessment means an actuarial tool that has been
14 validated in Nebraska to determine the likelihood of the parolee engaging
15 in future criminal behavior.

16 (2) The department ~~Division of Parole Supervision~~ shall establish an
17 evidence-based process that utilizes a risk and needs assessment to
18 measure criminal risk factors, specific individual needs, and
19 responsivity factors.

20 (3) The risk and needs assessment shall be performed at the
21 commencement of the parole term and every six months thereafter by
22 department ~~division~~ staff trained and certified in the use of the risk
23 and needs assessment.

24 (4) The validity of the risk and needs assessment shall be tested at
25 least every five years.

26 (5) Based on the results of the risk and needs assessment, the
27 department ~~division~~ shall target parolee criminal risk and need factors
28 by focusing sanction, program, and treatment resources on moderate-risk
29 and high-risk parolees.

30 (6) The department ~~division~~ shall provide training to its parole
31 officers on (a) use of a risk and needs assessment, (b) risk-based

1 supervision strategies, (c) relationship skills, (d) cognitive behavioral
2 interventions, (e) community-based resources, (f) criminal risk factors,
3 (g) targeting criminal risk factors to reduce recidivism, (h) proper use
4 of a matrix of administrative sanctions, custodial sanctions, and rewards
5 developed pursuant to section 83-1,119, and (i) addressing responsivity
6 factors. Each parole officer shall complete the training requirements set
7 forth in this subsection within one year after his or her hire date or
8 September 1, 2024, whichever is later.

9 (7) The department ~~division~~ shall provide training for chief parole
10 officers to become trainers so as to ensure long-term and self-sufficient
11 training capacity in the state.

12 **Sec. 87.** Section 83-1,103, Reissue Revised Statutes of Nebraska, is
13 amended to read:

14 83-1,103 The field parole service, consisting of district parole
15 officers working under the direction of the director ~~Director~~ of
16 ~~Supervision and Services~~ or district judge, shall be responsible for the
17 investigation, supervision, and assistance of parolees, probationers, or
18 individuals subject to community supervision under section 83-174.03. The
19 field parole service shall be sufficient in size to assure that no
20 district parole officer carries a case load larger than is compatible
21 with adequate parole investigation or supervision.

22 **Sec. 88.** Section 83-1,103.01, Reissue Revised Statutes of Nebraska,
23 is amended to read:

24 83-1,103.01 A parole officer assigned by the director ~~Director~~ of
25 ~~Supervision and Services~~ to supervise individuals subject to lifetime
26 community supervision pursuant to section 83-174.03 shall:

27 (1) Make investigations, prior to an individual subject to community
28 supervision being released from incarceration, in cooperation with
29 institutional caseworkers at prisons, mental health facilities, and
30 county jails, to determine the community supervision conditions necessary
31 to protect the public and make reasonable advance preparation for release

1 into the community;

2 (2) Assist individuals subject to community supervision to comply
3 with the conditions of supervision and to make a successful adjustment in
4 the community;

5 (3) Supervise individuals subject to community supervision by
6 keeping informed of their conduct and condition;

7 (4) Make reports as required by the director ~~Director of Supervision~~
8 ~~and Services~~ to determine the effectiveness of community supervision in
9 protecting the public or the progress of an individual subject to
10 community supervision;

11 (5) Cooperate with social welfare agencies and treatment providers
12 to ensure that individuals subject to community supervision receive any
13 necessary services or treatment;

14 (6) Inform the director ~~Director of Supervision and Services~~ when,
15 in the opinion of the community supervision officer, an individual is in
16 violation of the conditions of his or her community supervision, and
17 whenever necessary exercise the power of arrest as provided in section
18 83-173 ~~83-1,102~~;

19 (7) Conduct periodic reviews of the conditions of community
20 supervision imposed on an individual as required by the director ~~Director~~
21 ~~of Supervision and Services~~; and

22 (8) Exercise all powers and perform all duties necessary and proper
23 in carrying out his or her responsibilities.

24 **Sec. 89.** Section 83-1,103.02, Reissue Revised Statutes of Nebraska,
25 is amended to read:

26 83-1,103.02 (1) Prior to the release from incarceration of an
27 individual subject to lifetime community supervision pursuant to section
28 83-174.03, the department ~~Division of Parole Supervision~~ shall:

29 (a) Notify the individual in writing that he or she is subject to
30 community supervision upon completion of his or her criminal sentence;

31 (b) Inform the individual subject to community supervision of the

1 process by which conditions of community supervision are determined and
2 his or her right to submit relevant information to the department
3 ~~division~~ for consideration when establishing the conditions of
4 supervision;

5 (c) Determine the individual's risk of recidivism if released into
6 the community, utilizing a validated risk assessment tool;

7 (d) After considering the information required in subdivision (e) of
8 this subsection, determine the conditions of supervision which will most
9 effectively minimize the risk of the individual committing another sex
10 offense. The conditions shall be the least restrictive conditions
11 available, in terms of the effect on the individual's personal freedom,
12 which minimize the risk of recidivism and are compatible with public
13 safety; and

14 (e) In determining the conditions of supervision to be imposed, the
15 department ~~division~~ shall consider the following:

16 (i) A report prepared by the institutional caseworkers relating to
17 the individual's personality, social history, and adjustment to authority
18 and including any recommendations which the staff of the facility may
19 make;

20 (ii) All official reports of the individual's prior criminal record,
21 including reports and records of earlier probation and parole
22 experiences;

23 (iii) The presentence investigation report;

24 (iv) The reports of any physical, mental, and psychiatric
25 examinations of the individual;

26 (v) Any relevant information which may be submitted by the
27 individual, his or her attorney, the victim of the crime, or other
28 persons; and

29 (vi) Such other relevant information concerning the individual as
30 may be reasonably available.

31 (2) Upon completion of the risk assessment and the determination of

1 the conditions of community supervision and no later than thirty days
2 prior to the completion of the individual's criminal sentence, the
3 department division shall issue a certificate of community supervision to
4 the individual containing the conditions of community supervision he or
5 she will be required to comply with upon the completion of his or her
6 criminal sentence. The director ~~Director of Supervision and Services~~
7 shall include with the certificate written information on how to appeal
8 the determination of the conditions of community supervision.

9 **Sec. 90.** Section 83-1,103.03, Reissue Revised Statutes of Nebraska,
10 is amended to read:

11 83-1,103.03 (1) The department ~~Division of Parole Supervision~~ shall
12 review the conditions of community supervision imposed on an individual
13 pursuant to section 83-174.03 on an annual basis and shall provide the
14 individual the opportunity to submit written materials to the department
15 ~~division~~ for consideration during such review.

16 (2) If the department ~~division~~ determines, after reviewing the
17 individual's conduct while under supervision and any other relevant
18 facts, that one or more of the conditions of community supervision
19 imposed upon the individual is no longer necessary to reduce the risk of
20 the individual reoffending or is no longer the least restrictive
21 condition compatible with public safety, the department ~~division~~ shall
22 revise the conditions of community supervision so that the individual's
23 freedom is not unnecessarily restricted.

24 **Sec. 91.** Section 83-1,103.04, Reissue Revised Statutes of Nebraska,
25 is amended to read:

26 83-1,103.04 (1) Whenever a determination or revision of the
27 conditions of community supervision is made by the department ~~Division of~~
28 ~~Parole Supervision~~, the individual subject to the conditions shall be
29 entitled to an appeal. The appeal shall be heard by the district court in
30 the county where the individual resides. The individual shall be informed
31 of his or her right to request counsel, and if counsel is requested the

1 court shall determine if the individual is indigent. If the court finds
2 the individual to be indigent, it shall appoint counsel from the public
3 defender's office to represent the individual during the appeal.

4 (2) In an appeal contesting the determination or revision of the
5 conditions of community supervision, the burden of proof shall be on the
6 individual subject to community supervision to show by clear and
7 convincing evidence (a) that the conditions in question will not reduce
8 the risk of the individual reoffending or otherwise protect the public or
9 (b) that the condition is overly restrictive of the individual's freedom
10 and a less restrictive condition is available which is equally or more
11 effective in reducing the risk of the individual reoffending.

12 **Sec. 92.** Section 83-1,104, Reissue Revised Statutes of Nebraska, is
13 amended to read:

14 83-1,104 A district parole officer shall:

15 (1) Make investigations, prior to a committed offender's release on
16 parole, in cooperation with institutional caseworkers and the Board of
17 Parole to determine the adequacy of parole plans and make reasonable
18 advance preparation for release on parole;

19 (2) Assist a committed offender who requests assistance prior to
20 release or a parolee to comply with the conditions of parole and to make
21 a successful adjustment in the community, including facilitating the
22 transitional needs of housing and employment, access to and participation
23 in job training services in the community, access to mental health
24 services, assisting with applications for health care coverage or
25 ensuring that the committed offender or parolee knows how to apply for
26 and obtain health care coverage, and assisting with enrollment in the
27 medical assistance program established pursuant to the Medical Assistance
28 Act, if eligible, to ensure that the committed offender or parolee has
29 access to such program close to the time of release or soon thereafter;

30 (3) Supervise parolees by keeping informed of their conduct and
31 condition, utilizing global positioning systems and other monitoring

1 technology as needed during the period of supervision;

2 (4) Make such reports as required by the director ~~Director of~~
3 ~~Supervision and Services~~ or district judge to determine the effectiveness
4 of the parole system or the progress of an individual parolee;

5 (5) Cooperate with social welfare agencies;

6 (6) Observe the work of any parole officer under his or her
7 supervision from time to time;

8 (7) Inform the director ~~Director of Supervision and Services~~ when,
9 in his or her opinion, any eligible parolee's conduct and attitude
10 warrant his or her discharge from active supervision, or when any
11 parolee's violation of the conditions of parole is of sufficient
12 seriousness to require action by the Board of Parole or district judge
13 and whenever necessary exercise the power of arrest as provided in
14 section 83-1,119;

15 (8) Delegate in his or her discretion any of the above
16 responsibilities to a parole officer under his or her supervision; and

17 (9) Exercise all powers and perform all duties necessary and proper
18 in carrying out his or her responsibilities.

19 **Sec. 93.** Section 83-1,107, Reissue Revised Statutes of Nebraska, is
20 amended to read:

21 83-1,107 (1)(a) Within sixty days after initial classification and
22 assignment of any offender committed to the department, all available
23 information regarding such committed offender shall be reviewed and a
24 committed offender department-approved personalized program plan document
25 shall be drawn up. The document shall specifically describe the
26 department-approved personalized program plan and the specific goals the
27 department expects the committed offender to achieve. The document shall
28 also contain a realistic schedule for completion of the department-
29 approved personalized program plan. The department-approved personalized
30 program plan shall be developed with the active participation of the
31 committed offender. The department shall provide programs to allow

1 compliance by the committed offender with the department-approved
2 personalized program plan.

3 Programming may include, but is not limited to:

4 (i) Academic and vocational education, including teaching such
5 classes by qualified offenders;

6 (ii) Substance abuse treatment;

7 (iii) Mental health and psychiatric treatment, including criminal
8 personality programming;

9 (iv) Constructive, meaningful work programs; and

10 (v) Any other program deemed necessary and appropriate by the
11 department.

12 (b) A modification in the department-approved personalized program
13 plan may be made to account for the increased or decreased abilities of
14 the committed offender or the availability of any program. Any
15 modification shall be made only after notice is given to the committed
16 offender. The department may not impose disciplinary action upon any
17 committed offender solely because of the committed offender's failure to
18 comply with the department-approved personalized program plan, but such
19 failure may be considered by the board in its deliberations on whether or
20 not to grant parole to a committed offender.

21 (2)(a) The department shall reduce the term of a committed offender
22 by six months for each year of the offender's term and pro rata for any
23 part thereof which is less than a year.

24 (b) In addition to reductions granted in subdivision (2)(a) of this
25 section, the department shall reduce the term of a committed offender by
26 three days on the first day of each month following a twelve-month period
27 of incarceration within the department during which the offender has not
28 been found guilty of (i) a Class I or Class II offense or (ii) more than
29 three Class III offenses under the department's disciplinary code.
30 Reductions earned under this subdivision shall not be subject to forfeit
31 or withholding by the department.

1 (c) The total reductions under this subsection shall be credited
2 from the date of sentence, which shall include any term of confinement
3 prior to sentence and commitment as provided pursuant to section
4 83-1,106, and shall be deducted from the maximum term, to determine the
5 date when discharge from the custody of the state becomes mandatory.

6 (3) While the offender is in the custody of the department,
7 reductions of terms granted pursuant to subdivision (2)(a) of this
8 section may be forfeited, withheld, and restored by the chief executive
9 officer of the facility with the approval of the director after the
10 offender has been notified regarding the charges of misconduct.

11 (4) The department, in consultation with the board, shall ensure
12 that a release or reentry plan is complete or near completion when the
13 offender has served at least eighty percent of his or her sentence. For
14 purposes of this subsection, release or reentry plan means a
15 comprehensive and individualized strategic plan to ensure an individual's
16 safe and effective transition or reentry into the community to which he
17 or she resides with the primary goal of reducing recidivism. At a
18 minimum, the release or reentry plan shall include, but not be limited
19 to, consideration of the individual's housing needs, medical or mental
20 health care needs, and transportation and job needs and shall address an
21 individual's barriers to successful release or reentry in order to
22 prevent recidivism. The release or reentry plan does not include an
23 individual's programming needs included in the individual's personalized
24 program plan for use inside the prison. However, the department shall
25 include in the release or reentry plan information regarding the
26 individual's progress on the individual's personalized program plan for
27 use inside the prison.

28 (5)(a) The department shall make treatment programming available to
29 committed offenders as provided in section 83-1,110.01 and shall include
30 continuing participation in such programming as part of each offender's
31 department-approved personalized program plan developed under subsection

1 (1) of this section.

2 (b) Any committed offender with a mental illness shall be provided
3 with the community standard of mental health care. The mental health care
4 shall utilize evidence-based therapy models that include an evaluation
5 component to track the effectiveness of interventions.

6 (c) Any committed offender with a mental illness shall be evaluated
7 before release to ensure that adequate monitoring and treatment of the
8 committed offender will take place or, if appropriate, that a commitment
9 proceeding under the Nebraska Mental Health Commitment Act or the Sex
10 Offender Commitment Act will take place.

11 (6)(a) Within thirty days after any committed offender has been
12 paroled, all available information regarding such parolee shall be
13 reviewed and a case plan document shall be drawn up and approved by the
14 department ~~Division of Parole Supervision~~. The document shall
15 specifically describe the approved case plan and the specific goals the
16 department ~~division~~ expects the parolee to achieve. The document shall
17 also contain a realistic schedule for completion of the approved case
18 plan. The approved case plan shall be developed with the active
19 participation of the parolee. During the term of parole, the parolee
20 shall comply with the approved case plan and the department ~~division~~
21 shall provide programs to allow compliance by the parolee with the
22 approved case plan.

23 Programming may include, but is not limited to:

24 (i) Academic and vocational education;

25 (ii) Substance abuse treatment;

26 (iii) Mental health and psychiatric treatment, including criminal
27 personality programming;

28 (iv) Constructive, meaningful work programs;

29 (v) Community service programs; and

30 (vi) Any other program deemed necessary and appropriate by the
31 department ~~division~~.

1 (b) A modification in the approved case plan may be made to account
2 for the increased or decreased abilities of the parolee or the
3 availability of any program. Any modification shall be made only after
4 notice is given to the parolee. Intentional failure to comply with the
5 approved case plan by any parolee as scheduled for any year, or pro rata
6 part thereof, shall cause disciplinary action to be taken by the
7 department ~~division~~ resulting in the forfeiture of up to a maximum of
8 three months' good time for the scheduled year.

9 (7) While the offender is in the custody of the board, reductions of
10 terms granted pursuant to subdivision (2)(a) of this section may be
11 forfeited, withheld, and restored by the director upon the recommendation
12 of the board after the offender has been notified regarding the charges
13 of misconduct or breach of the conditions of parole.

14 (8) Good time or other reductions of sentence granted under the
15 provisions of any law prior to July 1, 1996, may be forfeited, withheld,
16 or restored in accordance with the terms of the Nebraska Treatment and
17 Corrections Act.

18 (9) Pursuant to rules and regulations adopted by the probation
19 administrator and the director, an individualized post-release
20 supervision plan shall be collaboratively prepared by the Office of
21 Probation Administration and the department and provided to the court to
22 prepare individuals under custody of the department for post-release
23 supervision. All records created during the period of incarceration shall
24 be shared with the Office of Probation Administration and considered in
25 preparation of the post-release supervision plan.

26 **Sec. 94.** Section 83-1,107.01, Reissue Revised Statutes of Nebraska,
27 is amended to read:

28 83-1,107.01 (1) Unless otherwise provided by this section, whenever
29 an adult offender is paroled, the board shall require a parolee to pay a
30 monthly parole programming fee.

31 (2) Parolees under the supervision of the department ~~Division of~~

1 ~~Parole Supervision~~ shall pay a monthly parole programming fee of twenty-
2 five dollars, not later than the tenth day of each month, beginning the
3 second month of parole supervision and continuing for the duration of the
4 parole.

5 (3) The board shall waive payment of the monthly parole programming
6 fee in whole or in part if after a hearing a determination is made that
7 such payment would constitute an undue hardship on the parolee due to
8 limited income, employment or school status, or physical or mental
9 handicap. Such waiver shall be in effect only during the period of time
10 that the parolee is unable to pay his or her monthly parole programming
11 fee.

12 (4) When monthly parole programming fees are waived, in whole or in
13 part, the parole officer, pursuant to rules and regulations adopted by
14 the board, may contract with the parolee to perform approved community
15 service at the rate of five dollars per hour in lieu of payment of
16 monthly parole programming fees. A parolee may be required to pay a
17 participation fee in order to take advantage of community service
18 programs. A parolee may not accumulate more than three months' advance
19 credit for community service. The use of community service alternatives
20 does not preclude the imposition of other intermediate measures.

21 (5) The department, ~~division~~ with the approval of the Board of
22 Parole, shall implement sanctions if a parolee defaults in the payment of
23 monthly parole programming fees or any installment thereof as established
24 by subsection (2) of this section, except that parole shall not be
25 revoked nor shall the parolee be imprisoned for such nonpayment if the
26 parolee is financially unable to make the payment.

27 (6) If the board determines that the default in payment described in
28 subsection (5) of this section was not attributable to a deliberate
29 refusal to obey the order of the board or to failure on the parolee's
30 part to make a good faith effort to obtain the funds required for
31 payment, the board may allow the parolee additional time for payment,

1 reduce the amount of each installment, or revoke the fees or the unpaid
2 portion in whole or in part.

3 (7) No parolee shall be required to pay more than one monthly parole
4 programming fee per month.

5 (8) The imposition of monthly parole programming fees in this
6 section shall be considered separate and apart from specific service
7 delivery fees.

8 (9) Any adult offender received for supervision pursuant to section
9 29-2637 or the Interstate Compact for Adult Offender Supervision shall be
10 assessed a monthly parole programming fee during the period of time the
11 offender is actively supervised by Nebraska parole authorities.

12 (10) A parolee shall pay the fees described in this section to the
13 ~~department division~~. The ~~department division~~ shall remit all fees to the
14 State Treasurer for credit to the Parole Program Cash Fund.

15 (11) The board and the ~~department division~~ shall adopt and
16 promulgate rules and regulations to carry out this section.

17 **Sec. 95.** Section 83-1,107.02, Reissue Revised Statutes of Nebraska,
18 is amended to read:

19 83-1,107.02 The Parole Program Cash Fund is created. All funds
20 collected pursuant to section 83-1,107.01 shall be remitted to the State
21 Treasurer for credit to the fund. The fund shall be utilized by the
22 ~~department Division of Parole Supervision~~ for the purposes stated in
23 subdivision (20) ~~(8)~~ of section 83-173 ~~83-1,102~~. Any money in the fund
24 available for investment shall be invested by the state investment
25 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
26 State Funds Investment Act.

27 **Sec. 96.** Section 83-1,109, Reissue Revised Statutes of Nebraska, is
28 amended to read:

29 83-1,109 The chief executive officer of a facility shall regularly
30 report all good time and all forfeitures, withholdings, and restorations
31 of good time to the director. On the basis of such report, the director

1 shall inform the board ~~and the Director of Supervision and Services~~ of
2 all committed offenders who are expected to become eligible for release
3 on parole within the next three months.

4 **Sec. 97.** Section 83-1,118, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 83-1,118 (1) If, in the opinion of the board, upon receipt of
7 information from the director ~~Director of Supervision and Services~~, a
8 parolee has shown suitable compliance with his or her parole programming
9 plan, the board may reduce the level of supervision for a parolee that is
10 commensurate with the best interests of the parolee and is compatible
11 with the protection of the public.

12 (2) The board shall discharge a parolee from parole when the time
13 served in the custody of the department and the time served on parole
14 equal the maximum term less good time.

15 (3) The department shall discharge a committed offender from the
16 custody of the department when the time served in the facility equals the
17 maximum term less good time.

18 (4) Upon completion of the lawful requirements of the sentence, the
19 department shall provide the parolee or committed offender with a written
20 notice regarding his or her civil rights. The notice shall inform the
21 parolee or committed offender that voting rights are restored upon
22 completion of the sentence. The notice shall also include information on
23 restoring other civil rights through the pardon process, including
24 application to and hearing by the Board of Pardons.

25 (5) The Board of Parole may discharge a parolee from parole when
26 such parolee is under the supervision of another state's correctional
27 institution and such offender has reached the expiration date of his or
28 her Nebraska parole term.

29 **Sec. 98.** Section 83-1,119, Reissue Revised Statutes of Nebraska, is
30 amended to read:

31 83-1,119 (1) For purposes of this section:

1 (a) Absconding parole supervision means a parolee has purposely
2 avoided supervision for a period of at least two weeks and reasonable
3 efforts by a parole officer and staff to locate the parolee in person
4 have proven unsuccessful;

5 (b) Administrative sanction means additional parole requirements
6 imposed upon a parolee by his or her parole officer, with the full
7 knowledge and consent of the parolee, designed to hold the parolee
8 accountable for substance abuse or technical violations of conditions of
9 parole, including, but not limited to:

10 (i) Counseling or reprimand by the department ~~Division of Parole~~
11 ~~Supervision~~;

12 (ii) Increased supervision contact requirements;

13 (iii) Increased substance abuse testing;

14 (iv) Referral for substance abuse or mental health evaluation or
15 other specialized assessment, counseling, or treatment;

16 (v) Imposition of a designated curfew for a period to be determined
17 by the department ~~division~~; and

18 (vi) Travel restrictions to stay within his or her county of
19 residence or employment unless otherwise permitted by the department
20 ~~division~~;

21 (c) Contract facility means a county jail that contracts with the
22 department to house parolees or other offenders under the jurisdiction of
23 the department;

24 (d) Substance abuse violation means a parolee's activities or
25 behaviors associated with the use of chemical substances or related
26 treatment services resulting in a violation of an original condition of
27 parole, including:

28 (i) Positive breath test for the consumption of alcohol if the
29 parolee is required to refrain from alcohol consumption;

30 (ii) Positive urinalysis for the illegal use of drugs;

31 (iii) Failure to report for alcohol testing or drug testing; and

1 (iv) Failure to appear for or complete substance abuse or mental
2 health treatment evaluations or inpatient or outpatient treatment; and

3 (e) Technical violation means a parolee's activities or behaviors
4 which create the opportunity for re-offending or diminish the
5 effectiveness of parole supervision resulting in a violation of an
6 original condition of parole and includes:

7 (i) Moving traffic violations;

8 (ii) Failure to report to his or her parole officer;

9 (iii) Leaving the state without the permission of the Board of
10 Parole;

11 (iv) Failure to work regularly or attend training or school;

12 (v) Failure to notify his or her parole officer of change of address
13 or employment;

14 (vi) Frequenting places where controlled substances are illegally
15 sold, used, distributed, or administered; and

16 (vii) Failure to pay fines, court costs, restitution, or any fees
17 imposed pursuant to section 83-1,107.01 as directed.

18 Technical violation does not include absconding parole supervision.

19 (2) The department ~~division~~ shall develop a matrix of rewards for
20 compliance and positive behaviors and graduated administrative sanctions
21 and custodial sanctions for use in responding to and deterring substance
22 abuse violations and technical violations. A custodial sanction of thirty
23 days in a correctional facility or a contract facility shall be
24 designated as the most severe response to a violation in lieu of
25 revocation.

26 (3) Whenever a parole officer has reasonable cause to believe that a
27 parolee has committed or is about to commit a substance abuse violation
28 or technical violation while on parole, but that the parolee will not
29 attempt to leave the jurisdiction and will not place lives or property in
30 danger, the parole officer shall either:

31 (a) Impose one or more administrative sanctions based upon the

1 parolee's risk level, the severity of the violation, and the parolee's
2 response to the violation. If administrative sanctions are to be imposed,
3 the parolee shall acknowledge in writing the nature of the violation and
4 agree upon the administrative sanction. The parolee has the right to
5 decline to acknowledge the violation. If he or she declines to
6 acknowledge the violation, the parole officer shall take action pursuant
7 to subdivision (3)(b) of this section. A copy of the report shall be
8 submitted to the Board of Parole; or

9 (b) Submit a written report to the Board of Parole, outlining the
10 nature of the parole violation, and request the imposition of a custodial
11 sanction of up to thirty days in a correctional facility or a contract
12 facility. On the basis of the report and such further investigation as
13 the board may deem appropriate, the board shall determine whether and how
14 the parolee violated the conditions of parole and may:

15 (i) Dismiss the charge of violation; or

16 (ii) If the board finds a violation justifying a custodial sanction,
17 issue a warrant if necessary and impose a custodial sanction of up to
18 thirty days in a correctional facility or a contract facility.

19 (4) Whenever a parole officer has reasonable cause to believe that a
20 parolee has violated or is about to violate a condition of parole by a
21 violation other than a substance abuse violation or a technical violation
22 and the parole officer has reasonable cause to believe that the parolee
23 will not attempt to leave the jurisdiction and will not place lives or
24 property in danger, the parole officer shall submit a written report to
25 the Board of Parole which may, on the basis of such report and such
26 further investigation as it may deem appropriate:

27 (a) Dismiss the charge of violation;

28 (b) Determine whether the parolee violated the conditions of his or
29 her parole;

30 (c) Impose a custodial sanction of up to thirty days in a
31 correctional facility or a contract facility;

1 (d) Revoke his or her parole in accordance with the Nebraska
2 Treatment and Corrections Act; or

3 (e) Issue a warrant for the arrest of the parolee.

4 (5) Whenever a parole officer has reasonable cause to believe that a
5 parolee has violated or is about to violate a condition of parole and
6 that the parolee will attempt to leave the jurisdiction or will place
7 lives or property in danger, the parole officer shall arrest the parolee
8 without a warrant and call on any peace officer to assist him or her in
9 doing so.

10 (6) Whenever a parolee is arrested with or without a warrant, he or
11 she shall be detained in a local jail or other detention facility
12 operated by the department ~~Department of Correctional Services~~ pending
13 completion of review of parole proceedings by the Board of Parole.
14 Immediately after such arrest and detention, the parole officer shall
15 notify the Board of Parole and submit a written report of the reason for
16 such arrest. A complete investigation shall be made by the department
17 ~~Division of Parole Supervision~~ and submitted to the board. After prompt
18 consideration of such written report, the board shall order the parolee's
19 release from detention or continued confinement to await a final decision
20 on imposition of a custodial sanction or the revocation of parole.

21 (7) The Board of Parole shall adopt and promulgate rules and
22 regulations necessary to carry out this section.

23 **Sec. 99.** Section 83-1,122.02, Reissue Revised Statutes of Nebraska,
24 is amended to read:

25 83-1,122.02 (1) The department ~~Division of Parole Supervision~~ shall
26 create a pilot program to establish a technical parole violation
27 residential housing program. The purpose of the program is to provide
28 accountability and intensive support for individuals on parole who commit
29 technical violations, without revoking them fully back to prison.

30 (2) The program shall provide a structured environment for selected
31 individuals on parole who have committed technical violations. The

1 program shall be based upon a therapeutic community model. Participants
2 in the program shall, at a minimum, be required to take part in
3 counseling, educational, and other programs as the department ~~Division of~~
4 ~~Parole Supervision~~ deems appropriate, to provide community service, and
5 to submit to drug and alcohol screening.

6 (3) An individual on parole shall not be placed in the pilot program
7 until the department ~~Division of Parole Supervision~~ has determined the
8 individual is a suitable candidate in accordance with policies and
9 guidelines developed by the division.

10 ~~(4) On or before June 1, 2024, the Division of Parole Supervision~~
11 ~~shall electronically submit a report to the Judiciary Committee of the~~
12 ~~Legislature regarding the pilot program. The report shall evaluate~~
13 ~~effects of the pilot program on recidivism and make recommendations~~
14 ~~regarding expansion of or changes to the program.~~

15 ~~(4)~~ (5) For purposes of this section, technical violation has the
16 same meaning as in section 83-1,119.

17 **Sec. 100.** Section 83-1,125, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 83-1,125 (1) If a warrant or detainer is placed against a committed
20 offender by a court, parole agency, or other authority of this or any
21 other jurisdiction, the director ~~Director of Supervision and Services~~
22 shall inquire before such offender becomes eligible for parole whether
23 the authority concerned intends to execute or withdraw the warrant or
24 detainer when the offender is released.

25 (2) If the authority notifies the director ~~Director of Supervision~~
26 ~~and Services~~ that it intends to execute the warrant or detainer when the
27 offender is released, the director ~~Director of Supervision and Services~~
28 shall advise the authority concerned of the sentence under which the
29 offender is held, the time of parole eligibility, any decision of the
30 board relating to the offender, and the nature of the offender's
31 adjustment during imprisonment and shall give reasonable notice to such

1 authority of the offender's release date.

2 (3) The board may parole an offender who is eligible for release to
3 a warrant or detainer. If an offender is paroled to such a warrant or
4 detainer, the board may provide, as a condition of release, that if the
5 charge or charges on which the warrant or detainer is based are
6 dismissed, or are satisfied after conviction and sentence, prior to the
7 expiration of the offender's parole term, the authority to whose warrant
8 or detainer the offender is released shall return the offender to serve
9 the remainder of the parole term or such part as the board may determine.

10 (4) If a person paroled to a warrant or detainer is thereafter
11 sentenced and placed on probation, or released on parole in another
12 jurisdiction, prior to the expiration of the parole term less good time
13 in this state, the board may permit the person to serve the remainder of
14 the parole term or such part as the board may determine concurrently with
15 the person's new probation or parole term. Such concurrent terms may be
16 served in either of the two jurisdictions, and supervision shall be
17 administered in accordance with the Interstate Compact for Adult Offender
18 Supervision.

19 **Sec. 101.** Section 83-1,125.01, Reissue Revised Statutes of Nebraska,
20 is amended to read:

21 83-1,125.01 (1) The Board of Parole and the department ~~Division of~~
22 ~~Parole Supervision~~ may maintain an individual file for each person who is
23 under the jurisdiction of the Board of Parole. Such file may be
24 maintained electronically and shall include, when available and
25 appropriate, the following information on such person:

26 (a) Admission summary;

27 (b) Presentence investigation report;

28 (c) Classification reports and recommendations;

29 (d) Official records of conviction and commitment along with any
30 earlier criminal records;

31 (e) Progress reports and admission-orientation reports;

- 1 (f) Reports of any disciplinary infractions and their disposition;
- 2 (g) Risk and needs assessments;
- 3 (h) Parole plan and parole placement and investigation worksheets;
- 4 (i) Decision guideline scores;
- 5 (j) Parole case plan;
- 6 (k) Parole progress reports and contact notes;
- 7 (l) Arrest and violation reports, including disposition;
- 8 (m) Parole proceedings orders and notices;
- 9 (n) Other documents related to parole supervision;
- 10 (o) Correspondence; and
- 11 (p) Other pertinent data concerning his or her background, conduct,
- 12 associations, and family relationships.

13 (2) Any decision concerning release on or revocation of parole or
14 imposition of sanctions shall be made only after the individual file has
15 been reviewed. The contents of the individual file shall be confidential
16 unless disclosed in connection with a public hearing and shall not be
17 subject to public inspection except by court order for good cause shown.
18 The contents of the file shall not be accessible to any person under the
19 jurisdiction of the Board of Parole. A person under the jurisdiction of
20 the board may obtain access to his or her medical records by request to
21 the provider pursuant to sections 71-8401 to 71-8407 notwithstanding the
22 fact that such medical records may be a part of his or her parole file.
23 The board and the department ~~Division of Parole Supervision~~ have the
24 authority to withhold decision guideline scores, risk and needs
25 assessment scores, and mental health and psychological records of a
26 person under the jurisdiction of the board when appropriate.

27 (3) Nothing in this section limits in any manner the authority of
28 the Public Counsel to inspect and examine the records and documents of
29 the board and the department ~~Division of Parole Supervision~~ pursuant to
30 sections 81-8,240 to 81-8,254, except that the Public Counsel's access to
31 the medical or mental health records of a person under the jurisdiction

1 of the board shall be subject to his or her consent. The office of Public
2 Counsel shall not disclose the medical or mental health records of a
3 person under the jurisdiction of the board to anyone else, including any
4 other person under the jurisdiction of the board, except as authorized by
5 law.

6 (4) For any person under the jurisdiction of the Board of Parole,
7 the board shall provide such person's (a) name, (b) parole officer, and
8 (c) conditions of parole to the Nebraska Commission on Law Enforcement
9 and Criminal Justice which shall provide access to such information to
10 law enforcement agencies through the state's criminal justice information
11 system.

12 **Sec. 102.** Section 83-962, Reissue Revised Statutes of Nebraska, is
13 amended to read:

14 83-962 (1) A correctional system overcrowding emergency shall exist
15 whenever the director certifies that the department's inmate population
16 is over one hundred forty percent of operational ~~design~~ capacity. The
17 director shall so certify within thirty days after the date on which the
18 population first exceeds one hundred forty percent of operational ~~design~~
19 capacity.

20 (2) During a correctional system overcrowding emergency, the board
21 shall immediately consider or reconsider committed offenders eligible for
22 parole who have not been released on parole.

23 (3) Upon such consideration or reconsideration, and for all other
24 consideration of committed offenders eligible for parole while the
25 correctional system overcrowding emergency is in effect, the board shall
26 order the release of each committed offender unless it is of the opinion
27 that such release should be deferred because:

28 (a) The board has determined that it is more likely than not that
29 the committed offender will not conform to the conditions of parole; or

30 (b) The board has determined that the committed offender's continued
31 correctional treatment, medical care, or vocational or other training in

1 ~~the facility will substantially enhance the offender's capacity to lead a~~
2 ~~law-abiding life when released at a later date. release of the committed~~
3 ~~offender would have a very significant and quantifiable effect on~~
4 ~~institutional discipline; or~~

5 ~~(c) The board has determined that there is a very substantial risk~~
6 ~~that the committed offender will commit a violent act against a person.~~

7 (4) In making the determination regarding the risk that a committed
8 offender will not conform to the conditions of parole, the board shall
9 take into account the factors set forth in subsection (2) of section
10 83-1,114 and shall comply with the requirements of subsection (3) of
11 section 83-1,114 and section 83-196.01.

12 (5) The board shall continue granting parole to offenders under this
13 section until the director certifies that the population is at
14 operational capacity. The director shall so certify within thirty days
15 after the date on which the population first reaches operational
16 capacity.

17 **Sec. 103.** Original sections 28-519, 43-1401, 43-1414, 47-624,
18 47-624.01, 47-627, 47-629, 47-903, 47-908, 47-919, 69-2403, 69-2409.04,
19 69-2410, 69-2420, 71-904, 71-915, 71-922, 71-924, 71-941, 71-951, 71-952,
20 71-954, 71-1208, 81-1401, 83-170, 83-171, 83-171.01, 83-173, 83-174.03,
21 83-174.04, 83-174.05, 83-192, 83-1,100, 83-1,100.02, 83-1,103,
22 83-1,103.01, 83-1,103.02, 83-1,103.03, 83-1,103.04, 83-1,104, 83-1,107,
23 83-1,107.01, 83-1,107.02, 83-1,109, 83-1,118, 83-1,119, 83-1,122.02,
24 83-1,125, 83-1,125.01, and 83-962, Reissue Revised Statutes of Nebraska,
25 and sections 27-413, 28-105, 28-311.11, 28-316.01, 28-318, 28-322,
26 29-2221, 29-2246, 29-2252, 29-2261, 29-2935, 29-4003, 29-4019, 43-1411,
27 47-1102, 47-1103, 47-1104, 47-1105, 47-1106, 47-1107, 47-1108, 47-1109,
28 47-1110, 47-1111, 47-1113, 47-1114, 47-1115, 47-1116, 47-1117, 47-1119,
29 71-901, 71-903, 71-919, 71-920, 71-926, 71-939, 71-958, 71-961, 71-1203,
30 71-1204, 71-1206, 71-1223, 71-3426, and 71-3430, Revised Statutes
31 Cumulative Supplement, 2024, are repealed.

1 **Sec. 104.** The following sections are outright repealed: Sections
2 69-2409, 69-2411, 69-2412, 69-2413, 69-2414, 69-2415, 69-2416, 69-2417,
3 69-2418, 69-2419, 69-2423, 83-1,101, and 83-1,102, Reissue Revised
4 Statutes of Nebraska.